



CHAPTER cix.

An Act to empower the mayor aldermen and burgesses of the county borough of Wolverhampton to purchase certain tramways and light railways and to confer further powers upon them with regard to the provision and working of trolley vehicles and omnibuses along the routes of such tramways and light railways and on other routes to authorise the Corporation and the Cannock Rural District Council to construct street works and to acquire lands for those and other purposes to extend the area of supply for electricity by the Corporation and to empower them to purchase part of the undertaking of the Midland Electric Corporation for Power Distribution Limited to make further provision with regard to the water undertaking of the Corporation and the health local government and improvement of the borough and for other purposes.

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[3rd August 1928.]

WHEREAS the borough of Wolverhampton in the county of Stafford (hereinafter called "the borough") is a county borough under the government of the mayor aldermen and burgesses of the borough (hereinafter called "the Corporation"):

And whereas the Corporation are the owners of and are working systems of trolley vehicles and omnibuses within their borough and in the neighbourhood thereof:

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— And whereas it is expedient to empower the Corporation to purchase by agreement from the Wolverhampton District Electric Tramways Limited the South Staffordshire Tramways Company the South Staffordshire Tramways (Lessee) Company Limited and the British Electric Traction Company Limited certain tramways light railways and other property in the neighbourhood of the borough with a view to the discontinuance of such tramways and light railways and the substitution therefor of trolley vehicles and omnibuses or one of those classes of vehicles :

And whereas it is expedient to empower the Corporation subject to the provisions of this Act to use and run trolley vehicles and omnibuses along the routes referred to in this Act :

And whereas it is expedient to authorise the Corporation to construct the street works referred to in this Act and to acquire lands for and in connection with the construction of such street works and for the other purposes referred to in this Act :

And whereas it is expedient to authorise the Cannock Rural District Council (with the consent and in lieu of the Corporation) to construct the Street Work No. 9 authorised by this Act and to acquire lands for and in connection with the construction of such street work :

And whereas the Corporation are the owners of the undertaking whereby the borough as it existed prior to the passing of the Wolverhampton Corporation Act 1926 and certain areas which were included in the borough by that Act and certain other areas in the neighbourhood of the borough are supplied with electricity :

And whereas the urban district of Tettenhall and that part of the parish of Lower Penn which lies to the north and north-west of the imaginary straight line described in the section of this Act of which the marginal note is " Extension of electricity limits " together with those parts of the borough which prior to the said Act of 1926 comprised the urban district of Heath Town and a part of the parish of Upper Penn are included within the area of supply of the Midland Electric Corporation for Power Distribution Limited but could be supplied with electricity more conveniently by the Corporation and it is expedient to empower the Corporation to acquire the portion of the undertaking of the said

Midland Electric Corporation for Power Distribution Limited which relates to those areas and to include those areas within the limits of the Corporation for the supply of electricity : A.D. 1928.

And whereas it is expedient to extend the limits of electricity supply of the Corporation so as to include (in addition to the areas aforesaid) the other areas referred to in this Act :

And whereas the Corporation are the owners of waterworks and supply water within the borough and the neighbourhood thereof under the provisions of various Acts of Parliament and Orders confirmed by Parliament and it is expedient to make further provision with regard to the water undertaking of the Corporation and the supply of water by them :

And whereas it is expedient to make further and better provision with regard to the health local government and improvement of the borough and to enlarge the powers of the Corporation in regard thereto as is provided in this Act :

And whereas it is expedient that the other provisions contained in this Act be enacted :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

And whereas estimates have been prepared by the Corporation for the purposes hereinafter mentioned and such estimates are as follows :—

The construction of the street works	£
authorised by this Act - - -	68,900
The provision of trolley vehicles - -	40,000
The provision of electrical equipment	
and the construction of other	
works necessary for working the	
trolley vehicle routes authorised	
by this Act - - - -	31,000
The provision of omnibuses - - -	40,000
The erection of buildings for the pur-	
poses of the trolley vehicles or	
omnibuses of the Corporation -	36,500
The reconstruction of the roads upon	
which the tramways and light	
railways to be removed or discon-	
tinued under this Act are situate -	28,000

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And whereas the works included in such estimates are permanent works and it is expedient that the cost thereof should be spread over a term of years :

And whereas in relation to the promotion of the Bill for this Act the requirements of the Borough Funds Acts 1872 and 1903 have been observed :

And whereas plans and sections showing the lines and levels of the works authorised by this Act and also a book of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands required or which may be taken for the purposes or under the powers of this Act were duly deposited with the clerk of the peace for the county of Stafford and are hereinafter respectively referred to as the deposited plans sections and book of reference :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

PART I.

PRELIMINARY.

Short title.

1. This Act may be cited as the Wolverhampton Corporation Act 1928.

Division of
Act into
Parts.

2. This Act is divided into Parts as follows :—

Part I.—Preliminary.

Part II.—Trolley vehicles and omnibuses.

Part III.—Lands and street works.

Part IV.—Electricity.

Part V.—Water.

Part VI.—Sanitary provisions.

Part VII.—Financial and miscellaneous provisions.

Incorporation of Acts.

3. The Lands Clauses Acts (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated

with this Act with the following exception and modification (namely) :— A.D. 1928.

- (a) Section 127 of the Lands Clauses Consolidation Act 1845 (relating to the sale of superfluous lands) is not incorporated with this Act;
- (b) The bond required by section 85 of the Lands Clauses Consolidation Act 1845 shall be under the corporate seal of the Corporation and shall be sufficient without the addition of the sureties mentioned in that section.

4.—(1) In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith or by the Public Health Acts have the same respective meanings unless there be something in the subject or context repugnant to such construction. Interpreta-
tion.

(2) In this Act unless the subject or context otherwise requires—

“The borough” means the borough of Wolverhampton;

“The Corporation” means the mayor aldermen and burgesses of the borough;

“The council” means the council of the borough;

“The town clerk” “the surveyor” and “the medical officer” mean respectively the town clerk the surveyor and the medical officer of health of the borough and respectively include any person duly authorised to discharge temporarily the duties of those offices;

“Trolley vehicle” means a mechanically propelled vehicle adapted for use upon roads without rails and moved by electrical power transmitted thereto from some external source;

“Trolley vehicle routes” means the routes upon which the Corporation are by this Act authorised to use trolley vehicles;

“The Wednesbury Corporation” “the Wolverhampton Company” “the South Staffordshire Company” and “the Lessee Company” mean respectively the mayor aldermen and burgesses of the borough of Wednesbury the Wolverhampton District Electric Tramways Limited

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the South Staffordshire Tramways Company and the South Staffordshire Tramways (Lessee) Company Limited;

“The Canal Company” means the Company of Proprietors of the Birmingham Canal Navigations;

“The canal” means the canal of the Canal Company and any towing-paths adjoining the same and belonging to leased or worked by the Canal Company;

“Omnibus” means any stage carriage moved by animal power or by mechanical power (including in that expression steam electrical and every other motive power not being animal power) obtained from some internal source;

“The tribunal” means the tribunal or other authority to whom any question of disputed purchase money or compensation under this Act is referred in pursuance of the Acquisition of Land (Assessment of Compensation) Act 1919;

“The Lands Clauses Acts” means the Lands Clauses Acts as modified by the Acquisition of Land (Assessment of Compensation) Act 1919;

“The Cannock District” and “the Cannock Council” mean respectively the Cannock Rural District and the Cannock Rural District Council;

“The Midland Corporation” means the Midland Electric Corporation for Power Distribution Limited;

“Food” has the meaning assigned to it by section 26 of the Sale of Food and Drugs Act 1899;

“Daily penalty” means a penalty for each day on which an offence is continued by a person after conviction;

“The Minister” means the Minister of Health;

“The general rate fund” and “the general rate” mean respectively the general rate fund and the general rate of the borough or until the date when the first new valuation list made under Part II of the Rating and Valuation Act 1925 comes into force in the borough the borough fund and the borough rate of the borough;

“ Statutory security ” has the meaning assigned to it by section 3 (Interpretation) of the Act of 1899 ;

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“ The Act of 1869 ” “ the Act of 1899 ” “ the Order of 1902 ” “ the Act of 1904 ” “ the Act of 1908 ” “ the Order of 1911 ” “ the Act of 1915 ” “ the Act of 1920 ” “ the Act of 1925 ” and “ the Act of 1926 ” mean respectively the *Wolverhampton Improvement Act 1869* the *Wolverhampton Corporation Act 1899* the *Wolverhampton Corporation Tramways Order 1902* the *Wolverhampton Corporation Act 1904* the *Wolverhampton Corporation Act 1908* the *Wolverhampton Order 1911* the *Wolverhampton Corporation Water Act 1915* the *Wolverhampton Corporation Act 1920* the *Wolverhampton Corporation Act 1925* and the *Wolverhampton Corporation Act 1926*.

PART II.

TROLLEY VEHICLES AND OMNIBUSES.

5. The Corporation may use trolley vehicles upon the following routes (namely) :—

Power to
use trolley
vehicles.

Route No. 1 (in the borough the urban districts of Bilston and Darlaston and the borough of Wednesbury) From the entrance to the depôt of the Corporation in Bilston Street (the termination of Route No. 7 authorised by the Act of 1925) along Bilston Street Bilston Road Wolverhampton Road Wellington Road Lichfield Street Oxford Street Moxley Road High Street Moxley Road Catherine's Cross and Pinfold Street to the Bull Stake ;

Route No. 2 (in the borough and the urban districts of Coseley and Bilston) From the Fighting Cocks along Parkfield Road Millfields Road High Street and Church Street to its junction with Lichfield Street ;

Route No. 2A (in the urban district of Bilston) From the junction of Church Street and Walsall Street along Walsall Street to its junction with Lichfield Street ;

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Route No. 3 (in the urban districts of Bilston and Willenhall) From the junction of Lichfield Street and Mount Pleasant along Mount Pleasant Willenhall Road Bilston Road Rose Hill and Bilston Street to its junction with New Road;

Route No. 4 (in the urban districts of Bilston and Coseley) From the junction of Moxley Road and Loxdale Street along Loxdale Street Salop Street and Bank Street to its junction with Lord Street;

Route No. 5 (in the urban district of Darlaston and the borough of Wednesbury) From the Bull Stake along Darlaston Road King's Hill Darlaston Road Trowse Lane and High Bullen Dudley Street Holyhead Road and Bridge Street to a point 150 feet to the southward of its junction with Potters Lane;

Route No. 6 (in the urban district of Darlaston and the borough of Wednesbury) From a point 100 feet to the westward of the junction of Moxley Road and Holyhead Road along Holyhead Road to its junction with Dudley Street:

Provided that—

(a) Before equipping any trolley vehicle route to include a turning point or before arranging for a new turning point on any route the Corporation shall submit plans of the turning point to the Minister of Transport for approval;

(b) The Corporation shall not under the powers of this Act—

(i) without the consent in writing of the Wednesbury Corporation in relation to the borough of Wednesbury and of the Darlaston Urban District Council in relation to the Darlaston Urban District and (so long as the Lessee Company owns or leases tramways on Route No. 5) of that company use trolley vehicles on any part of Route No. 5 unless they shall in accordance with the provisions of section 48 of the Act of 1899 have purchased so much of the tramways as exists on that route between the

Bull Stake (Darlaston) and the White Horse (Wednesbury) including the interest of the Lessee Company in so much of those tramways as aforesaid under the lease dated the third day of May nineteen hundred and six and made between the Wednesbury Corporation of the first part the British Electric Traction Company Limited of the second part and the Lessee Company of the third part;

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(ii) without the consent in writing of the Wednesbury Corporation and (so long as the Birmingham and Midland Motor Omnibus Company Limited runs an efficient service of motor omnibuses along that route) of that company use trolley vehicles over Route No. 6 and any question as to whether such an efficient service is being run shall be determined by the Minister of Transport;

(c) No turning point shall be fixed on any road or street belonging to or maintained by a railway company without the consent in writing of such company which consent shall not be unreasonably withheld.

6.—(1) The Corporation and the British Electric Traction Company Limited the Wolverhampton Company the South Staffordshire Company and the Lessee Company may enter into and carry into effect agreements for and in relation to the purchase by the Corporation from the said companies of the respective interests of such companies or any of them in the tramways light railways and other property more particularly described in the First Schedule to this Act.

As to purchase of tramways light railways &c.

(2) Any agreement entered into under the provisions of subsection (1) of this section may and shall have effect notwithstanding anything contained in section 51 (Restriction on exercise of powers in certain districts) of the Act of 1899 or any other enactment.

(3) Any agreement entered into between the parties referred to in subsection (1) of this section or any of them prior to the passing of this Act in relation to the matters aforesaid or any of them shall (except so far as the

A.D. 1928. — same is inconsistent with or rendered unnecessary by the provisions of this Act) have effect as fully as if the same were entered into immediately after the passing of this Act.

Application
of certain
provisions
of Tram-
ways Act
1870 to
trolley
vehicles.

7.—(1) The following provisions of the Tramways Act 1870 (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated with this Act and shall apply to the trolley vehicles authorised by this Act and such provisions shall be read and have effect as if the works to be constructed in the streets or roads for moving the trolley vehicles by electrical power were tramways and as if the said trolley vehicles were carriages used on tramways :—

Part II (relating to the construction of tramways) except sections 25 28 and 29;

Section 41 (Tramways to be removed in certain cases);

Section 46 (Byelaws by local authority Promoters may make certain regulations);

Section 47 (Penalties may be imposed in bye-laws);

Section 48 (Power to local authority to license drivers conductors &c.);

Section 49 (Penalty for obstruction of promoters in laying out tramway);

Section 51 (Penalty on passengers practising frauds on the promoters);

Section 53 (Penalty for bringing dangerous goods on the tramway);

Section 55 (Promoters or lessees to be responsible for all damages);

Section 56 (Recovery of tolls penalties &c.);

Section 57 (Right of user only);

Section 60 (Reserving powers of street authorities to widen &c. roads); and

Section 61 (Power for local or police authorities to regulate traffic in roads).

(2) Nothing in this section shall be deemed to A.D. 1928.
exclude a trolley vehicle from the provisions of section 78
of the Highway Act 1835 as to the side of the road on
which any wagon cart or other carriage is to be kept.

8.—(1) Subject to the provisions of this Act the following provisions of the Act of 1899 the Order of 1902 the Act of 1904 the Act of 1908 the Act of 1920 and the Act of 1925 shall extend and apply to the trolley vehicles authorised by this Act as if those provisions were with all necessary modifications re-enacted in this Act (that is to say) :—

Application
of previous
enactments
to trolley
vehicles.

The Act of 1899—

- Section 33 (Rates for passengers);
- Section 34 (Passengers' luggage);
- Section 35 (Rates for animals and goods);
- Section 36 (Corporation not bound to carry animals and goods);
- Section 37 (As to fares on Sundays or holidays);
- Section 39 (Periodical revision of rates and charges);
- Section 41 (Motive power);
- Section 43 (Special provisions as to use of electrical power);
- Section 46 (Byelaws);
- Section 50 (Working agreements);
- Section 55 (Orders &c. of Board of Trade);
- Section 57 (Power to acquire patent rights);
- The Third Schedule.

The Order of 1902—

- Section 8 (For protection of Postmaster-General);
- Section 9 (Cheap fares for labouring classes).

The Act of 1904—

- Section 19 (Attachment of brackets to buildings);
- Section 20 (Waiting-rooms);
- Section 21 (Penalty for malicious damage).

The Act of 1908—

- Section 5 (Use of tramway posts by Postmaster-General).

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The Act of 1920—

- Subsection (3) of section 9 (Power to provide and run omnibuses);
- Section 10 (Conditions as to running of omnibuses) except subsections (1) and (2);
- Section 19 (Conveyance of mails);
- Section 23 (Cloak-rooms &c.);
- Section 24 (Power to reserve cars for special purposes);
- Section 26 (Stopping and starting places);
- Section 27 (Through cars and omnibuses);
- Section 28 (Attachment of signs indicating stopping places to lamp-posts &c.);
- Section 30 (Lost property);
- Section 31 (Payment of fares rates and charges);
- Section 32 (Power for Corporation to suspend traffic);
- Section 33 (Use of tramways for sanitary purposes);
- Section 35 (For protection of railway companies).

The Act of 1925—

- Subsection (4) of section 5 (Power to use trolley vehicles);
- Section 9 (As to electrical works);
- Section 10 (For protection of railway companies) except subsection (12) thereof;
- Section 11 (For protection of Birmingham Canal Navigations);
- Section 12 (Corporation to have exclusive right of using apparatus for working trolley vehicles);
- Section 13 (Vehicles not to be deemed light locomotives or motor cars);
- Section 14 (Licence duties on trolley vehicles);
- Section 15 (Approval of vehicles by Minister of Transport);
- Section 16 (Inspection by Minister of Transport);

Section 22 (Tramway regulations to apply to trolley vehicles); A.D. 1928.

Section 24 (Trolley vehicles to form part of tramway undertaking);

Section 28 (As to byelaws &c. under this Part of this Act).

(2) (a) In the application of the provisions referred to in subsection (1) of this section (other than the provisions of the Act of 1925) the same shall be read and have effect as if the working equipment for trolley vehicles were tramways within the meaning of the said provisions and as if trolley vehicles were carriages used on the Corporation's tramways or were omnibuses of the Corporation (as the case may be) and as if the trolley vehicle undertaking authorised by this Act formed part of the trolley vehicle undertaking authorised by the Act of 1925.

(b) In the application of the said section 50 of the Act of 1899 that section shall be read and have effect as though the words "local authority company body or " person owning or working trolley vehicles or authorised " to work such vehicles " were substituted therein for the words "owning authority" wherever those words occur.

(c) In the application of the said section 9 of the Order of 1902 that section shall be read and have effect as though the words "half-past seven" were substituted for the word "seven" and the words "half-past five" were substituted for the word "six" in subsection (1) thereof.

(3) Provided that the said trolley vehicles shall only be used for the purpose of conveying passengers and parcels not exceeding fifty-six pounds in weight and dogs in the care of passengers the charge for any such dog to be a sum not exceeding the fare payable by the passenger but they shall not be used for the carriage of any minerals or any other animals or goods.

9. Subsection (B) (4) of section 8 (For protection of Postmaster-General) of the Order of 1902 shall be read and have effect as if the words "generated or used by or supplied to" were inserted in that subsection in substitution for the words "generated by."

Amendment
of section 8
of Order of
1902.

A.D. 1928.

As to abandon-
ment of
tramways
and light
railways.

10.—(1) The tramways and light railways on any of the trolley vehicle routes may be abandoned or discontinued either temporarily or permanently. Provided that no such tramway or light railway shall be so abandoned or discontinued by the Corporation until they shall have decided by resolution to use trolley vehicles or to run omnibuses on the route of such tramway or light railway or on the portion thereof so proposed to be abandoned or discontinued.

(2) Nothing in this section shall relieve the Corporation of any liability imposed upon them by section 41 (Tramways to be removed in certain cases) of the Tramways Act 1870 or section 69 (Railways to be removed in certain cases) of the South Staffordshire Light Railway Order 1900 in relation to any tramway or light railway in the event of the Corporation discontinuing the working of such tramway or light railway otherwise than in accordance with the provisions of this Act.

Power to
Corporation
to enter into
agreements
with local
authorities.

11.—(1) The Corporation and the Wednesbury Corporation the Bilston Urban District Council the Coseley Urban District Council the Darlaston Urban District Council and the Willenhall Urban District Council or any of them may enter into and carry into effect agreements for and in relation to—

(a) the removal of any existing tramways and light railways which are purchased by the Corporation along the trolley vehicle routes;

(b) the reconstruction of the roadway along which such tramways and light railways are laid.

(2) Any agreement entered into between the Corporation of the one part and the other authorities referred to in subsection (1) of this section or any of them of the other part prior to the passing of this Act in relation to the matters aforesaid or any of them shall have effect as if the same were entered into immediately after the passing of this Act.

(3) An agreement under this section may relieve the Corporation of any liability imposed upon them by section 41 (Tramways to be removed in certain cases) of the Tramways Act 1870 or by section 69 (Railways to be removed in certain cases) of the South Staffordshire

Light Railway Order 1900 in relation to any tramway or light railway or any part thereof respectively. A.D. 1928.

(4) (a) The Corporation shall not under the powers of this section interfere with or affect the canal or any weirs feeders toll-houses wharves workshops bridges or other works of the Canal Company without the consent in writing of the Canal Company which consent shall not be unreasonably withheld.

(b) All works carried out under the powers of this section which affect the canal shall be carried out in accordance with plans sections and specifications to be previously submitted to and approved by the engineer of the Canal Company (whose approval shall not be unreasonably withheld) and under the superintendence (if such superintendence shall be given) and to the reasonable satisfaction of the said engineer.

(c) Any question which may arise under this subsection between the Corporation and the Canal Company shall be determined by the arbitration of an engineer to be appointed (failing agreement between the Corporation and the Canal Company) by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply.

12. Section 21 (As to abandonment of tramways) of the Act of 1925 shall be read and have effect as if the words "other than Route No. 7" were omitted therefrom. Amendment of section 21 of Act of 1925.

13. Notwithstanding anything contained in section 48 of the Act of 1899 or in sections 43 and 44 of the Tramways Act 1870 the following words which are contained in the said section 43 (namely) :— Modification of section 48 of Act of 1899.

"No such resolution shall be valid unless a month's previous notice of the meeting and of the purpose thereof has been given in manner in which notices of meetings of such local authority are usually given nor unless two-thirds of the members constituting such local authority are present and vote at the meeting and a majority of those present and voting concur in the resolution"

(which words are applied to and for the purposes of the said section 44 as extended by the said section 48) shall not apply in relation to the purchase by the Corporation

A.D. 1928. — of any of the tramways which are described in the First Schedule to this Act.

Further
powers for
running
omnibuses.

14.—(1) In addition to their existing powers the Corporation may (in so far as they are not already authorised so to do) run omnibuses along the trolley vehicle routes :

Provided that the Corporation shall not under the powers of this Act—

(a) without the consent in writing of the Wednesbury Corporation in relation to the borough of Wednesbury and of the Darlaston Urban District Council in relation to the Darlaston Urban District and (so long as the Lessee Company owns or leases tramways on trolley vehicle Route No. 5 authorised by this Act) of that company run omnibuses on any part of the said Route No. 5 unless they shall in accordance with the provisions of section 48 of the Act of 1899 have purchased so much of the tramways as exists on that route between the Bull Stake (Darlaston) and the White Horse (Wednesbury) including the interest of the Lessee Company in so much of those tramways as aforesaid under the lease dated the third day of May nineteen hundred and six and made between the Wednesbury Corporation of the first part the British Electric Traction Company Limited of the second part and the Lessee Company of the third part ;

(b) without the consent in writing of the Wednesbury Corporation and (so long as the Birmingham and Midland Motor Omnibus Company Limited runs an efficient service of motor omnibuses along that route) of that company run omnibuses over trolley vehicle Route No. 6 authorised by this Act and any question as to whether such an efficient service is being run shall be determined by the Minister of Transport.

(2) The following provisions of the Act of 1899 the Order of 1902 the Act of 1920 and the Act of 1925 shall so far as they are applicable extend and apply to the exercise of the powers of this section as if they were

with any necessary modifications re-enacted in this Act A.D. 1928.
(that is to say):—

The Act of 1899—

Section 39 (Periodical revision of rates and charges).

The Order of 1902—

Section 9 (Cheap fares for labouring classes).

The Act of 1920—

Subsections (3) and (5) of section 9 (Power to provide and run omnibuses);

Section 10 (Conditions as to running of omnibuses) except subsections (1) and (2);

Section 12 (As to cesser of powers);

Section 13 (Provision in event of certain powers not being exercised within limited period);

Section 16 (Passengers' luggage);

Section 17 (Parcels and dogs);

Section 18 (Omnibuses to form part of tramway undertaking);

Section 19 (Conveyance of mails);

Section 20 (Shelters or waiting-rooms);

Section 21 (Working and other agreements);

Section 22 (Payment of contribution in event of working agreements &c. as to omnibus powers);

Section 23 (Cloak-rooms &c.);

Section 24 (Power to reserve cars for special purposes);

Section 26 (Stopping and starting places);

Section 27 (Through cars and omnibuses);

Section 28 (Attachment of signs indicating stopping places to lamp-posts &c.);

Section 30 (Lost property);

Section 31 (Payment of fares rates and charges);

Section 35 (For protection of railway companies).

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The Act of 1925—

Section 27 (Fares and charges);

Section 28 (As to byelaws &c. under this Part
of this Act):

Provided that the said section 9 of the Order of 1902 shall only extend and apply to and in respect of the running of omnibuses by the Corporation along trolley vehicle Routes Nos. 1 to 5 authorised by this Act and the said section 39 of the Act of 1899 shall only extend and apply in respect of the fares referred to in section 9 of the Order of 1902 and in so far as those fares are applicable to the running of omnibuses by the Corporation under this section.

For protec-
tion of Great
Western
Railway
Company.

15. Notwithstanding anything contained in this Part of this Act the following provisions for the protection of the Great Western Railway Company (in this section referred to as "the company") shall unless otherwise agreed in writing between the Corporation and the company apply and have effect (that is to say):—

(1) If the Corporation shall at any time decide to use trolley vehicles or to run omnibuses upon Route No. 2A authorised by this Act they shall give notice in writing of such decision to the company and the Corporation shall not use trolley vehicles or run omnibuses upon that route until the bridge upon that route carrying Walsall Street over the railway of the company near Bilston station has been reconstructed of sufficient strength to carry such trolley vehicles or omnibuses:

(2) Upon receipt of such notice from the Corporation the company shall thereupon reconstruct the said bridge so as to be of sufficient strength to carry trolley vehicles or omnibuses in accordance with plans and sections to be agreed between the Corporation and the company or in default of agreement to be settled by arbitration as hereinafter provided and on completion of the said works by the company the Corporation shall repay to the company a sum representing the reasonable cost thereof and the capitalised cost of the maintenance and renewal

of the bridge as reconstructed less a sum A.D. 1928.
representing the capitalised cost of the main- —
tenance and renewal of the existing bridge:

- (3) Any difference between the Corporation and the company hereunder shall be referred to and determined by an arbitrator to be appointed (failing agreement) at the request of either of the parties after giving notice in writing to the other by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such reference and determination.

16. Notwithstanding anything contained in this Part of this Act the following provision for the protection of the Canal Company shall apply and have effect (that is to say) :— For protec-
tion of
Canal Com-
pany.

The Corporation shall not under the powers of this Act (unless otherwise agreed in writing between the Corporation and the Canal Company) use trolley vehicles or run omnibuses over the bridge carrying Loxdale Street over the canal upon Route No. 4 otherwise than in accordance with the terms of an agreement dated the twenty-ninth day of June nineteen hundred and twenty-eight and made between the Corporation of the one part and the Canal Company of the other part.

17.—(1) The Corporation may make byelaws for regulating the travelling and for the prevention of nuisances in or upon any of their omnibuses or in or against any premises held by the Corporation in connection therewith. Byelaws as
to omni-
buses.

(2) Subsection (4) of section 9 (Power to provide and run omnibuses) of the Act of 1920 is hereby repealed.

18. Section 25 (Power to require intending passengers to wait in lines or queues) of the Act of 1920 and so much of sections 18 and 26 of the Act of 1925 as extends and applies the provisions of the said section 25 to the trolley vehicles and omnibuses respectively authorised by that Act are hereby repealed. Repeal of
section 25 of
Act of 1920.

A.D. 1928.

PART III.

LANDS AND STREET WORKS.

Power to
construct
street
works.

19.—(1) Subject to the provisions of this Act the Corporation may make and (so far as the same are in the borough) maintain in the lines and according to the levels shown on the deposited plans and sections the street works hereinafter described together with all necessary or proper works and conveniences connected therewith or incident thereto and may enter on take and use such of the lands delineated on the deposited plans and described in the deposited book of reference as they may require for the construction of such works or for the purpose of providing space for the erection of buildings adjoining or near to such works or for other the purposes of this Part of this Act.

(2) The street works hereinbefore referred to and authorised by this Act will (except where otherwise stated) be situate in the borough and are :—

Street Work No. 1 A widening of Darlington Street on the northerly side thereof and of North Street on the westerly side thereof;

Street Work No. 2 A widening of Bell Street on the northerly side thereof;

Street Work No. 3 A widening of Bell Street on the southerly side thereof;

Street Work No. 4 A widening of Little Brickkiln Street on the westerly side thereof;

Street Work No. 5 (in the urban district of Tettenhall) A widening of Wergs Road and Wrottesley Road on the southerly sides thereof respectively;

Street Work No. 6 A new road including a widening and improvement of the existing streets known as Old Heath Road and Church Street the widening of the bridge carrying the London Midland and Scottish Railway loop line over Old Heath Road and the construction of new bridges over the Birmingham Canal Navigations (Wyrley and Essington Canal) and under the London Midland and Scottish Railway (Wolverhampton and Walsall Branch) from Old Heath Road to the junction of Church Street with Tudor Road;

Street Work No. 7 A new road from the junction A.D. 1928.
 of Bushbury Road with Cannock Road to the
 junction of Park Lane with Third Avenue;

Street Work No. 8 A new road from Bushbury Lane
 extending in a north-westerly direction to the
 boundary of the borough;

Street Work No. 9 (in the parish of Bushbury) A
new road together with a widening and diversion
of Elston Hall Lane and a widening of the bridge
under the London Midland and Scottish Grand
Junction line from the termination of Street
Work No. 8 hereinbefore described to a point
eight yards or thereabouts west of the western
abutment of the said bridge;

Street Work No. 10 A widening and diversion of
 Three Tuns Lane;

Street Work No. 11 A widening of Queen Square
 on the southerly side thereof Dudley Street on
 the westerly side thereof and St. John's Street
 on the north-westerly side thereof;

Street Work No. 12 A widening of Dudley Street
 on the westerly side thereof.

20. For the protection of Hortons Estate Limited For protec-
(in this section referred to as "the company") the tion of
following provisions shall notwithstanding anything con- Hortons
tained in this Act and unless otherwise agreed in writing Estate
between the company and the Corporation apply and Limited.
have effect (that is to say):—

The provisions of the section of this Act of which
the marginal note is "Period for compulsory
purchase of lands" shall in their application to
the lands numbered on the deposited plans 1 3
4 5 and 6 (Street Work No. 1) and 31 32 33
34 and 35 (Street Work No. 12) be read and
have effect as if eighteen months from the
passing of this Act were mentioned therein
instead of five years from the first day of October
nineteen hundred and twenty-eight.

21. Notwithstanding anything contained in this Act For protec-
or shown upon the deposited plans the following provisions tion of
for the protection of W. Butler and Co. Limited (in this W. Butler
section called "the company") shall unless otherwise & Co.
 Limited.

A.D. 1928. agreed in writing between the company and the Corporation have effect (that is to say) :—

The Corporation shall not under the powers of this Act otherwise than in accordance with the terms of an agreement dated the thirtieth day of June nineteen hundred and twenty-eight and made between the Corporation of the one part and the company of the other part acquire any rights or interests of the company in or over any part of the lands numbered 38 and 42 on the deposited plans in relation to Street Work No. 12 situate on the westerly side of the proposed line of improvement shown on such plans but nothing in this section shall prevent the Corporation from acquiring the rights or interests of any other party in any part of such lands.

For further
protection
of Canal
Company.

22. The following provisions for the protection of the Canal Company shall notwithstanding anything contained in this Act and unless otherwise agreed in writing between the Corporation and the Canal Company apply and have effect in relation to the exercise by the Corporation of the powers of this Part of this Act (that is to say) :—

- (1) The Corporation shall not for the purposes of the Street Work No. 6 by this Part of this Act authorised enter upon take use purchase or acquire by compulsion the canal or any part thereof but the Canal Company shall sell to the Corporation such easement over the canal or any part thereof as may be reasonably required for making and maintaining in accordance with the provisions of this Act the said Street Work No. 6 and the abutments and approaches of the same :
- (2) The said Street Work No. 6 shall be constructed over the canal by a bridge of a single span and no part of such bridge or the abutments thereof or the approaches thereto or other works connected therewith shall be constructed on the canal and the bridge shall be of such a height as to give a minimum headway under the said span of eight feet six inches from the top weir level of the water in the canal to the underside of the said bridge ;

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- (3) The Canal Company may provide and maintain such lights (if any) under the said bridge as they may reasonably require during the construction thereof and the Corporation shall pay to the Canal Company the reasonable cost of providing and maintaining such lights (if any) :
- (4) The Corporation shall not without the consent of the Canal Company which consent shall not be unreasonably withheld deviate from the centre line of the said Street Work No. 6 :
- (5) The Corporation shall not execute any works of construction maintenance repair or renewal in connection with the said Street Work No. 6 (hereinafter in this section called " the works ") which in any way interfere with or affect the canal until the Corporation shall have delivered to the Canal Company plans sections working drawings and specifications of the works and until such plans sections working drawings and specifications shall have been approved in writing by the engineer of the Canal Company or failing such approval determined by arbitration as hereinafter provided and the works shall be executed by the Corporation at their sole expense in all things according to such plans sections working drawings and specifications as shall have been so approved or determined and to the reasonable satisfaction of the said engineer of the Canal Company :
- (6) The engineer of the Canal Company and any person authorised by him in writing shall at all times have free access to the works and all reasonable facilities shall be afforded to them by the Corporation for the inspection thereof and every reasonable notice which the Canal Company may give touching any defect or want of repair affecting the property of the Canal Company shall as soon as reasonably possible be complied with and the defect or repair made good by the Corporation :
- (7) Should it be reasonably necessary during and by reason of the execution by the Corporation of the works and operations in connection therewith or the subsequent maintenance renewal

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—

alteration replacing or repair thereof to execute any underpinning or other works for the purpose of securing the support or safety of the canal the Corporation shall free of all expense to the Canal Company execute and do all such underpinning or other works as the Canal Company may from time to time reasonably require for such purpose or the Canal Company may in their option and for any of these purposes enter upon the works or property of the Corporation and themselves execute all such underpinning or other works and the Corporation shall repay to the Canal Company all reasonable costs and expenses incurred by them in so doing :

- (8) The fact that any of the operations of the Corporation have been done or executed in accordance with any plan approved or not objected to by the engineer of the Canal Company or with any requirement or under the superintendence of the said engineer shall not relieve the Corporation from any liability for damage caused to the property of the Canal Company by the works or affect any claim by the Canal Company for injury caused to the property of the Canal Company thereby :
- (9) All the works and operations of the Corporation so far as affecting the Canal Company shall be carried on at a time or times to be reasonably approved by the engineer of the Canal Company so as (subject to reasonable facilities being given to the Corporation for the carrying out of the works) not to stop or unnecessarily to impede or interfere with the free and uninterrupted and safe use of the canal or with the traffic thereon and if any such obstruction or interference shall be caused or take place the Corporation shall pay to the Canal Company compensation in respect thereof to be recovered with costs in any court of competent jurisdiction :
- (10) The Corporation shall at their own expense construct alter renew repair and maintain the works which in any way interfere with or affect the canal to the reasonable satisfaction of the engineer of the Canal Company and if any loss

or damage or expense shall be sustained or incurred by the Canal Company in consequence of the works constructed by the Corporation or by reason of the failure of any of such works or of any act default or omission of the Corporation or of any persons in their employ or of their contractors or otherwise the Corporation shall pay to the Canal Company compensation in respect thereof and the Canal Company may if they think fit themselves make good any such injury or damage and recover the amount reasonably expended in so doing from the Corporation :

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- (11) Should it be necessary in consequence of the carrying out of the works by the Corporation for the Canal Company permanently or at the request of the Corporation temporarily to alter or to remove any telegraph or telephone posts and wires cables gas pipes water pipes water meters water columns drains electric power or electric light appliances or other works belonging to the Canal Company on or connected with the canal at or near to the works the Corporation shall bear and on demand pay to the Canal Company the reasonable expenses of and connected with such alterations and removals and of restoring the same or substituting other telegraph or telephone posts and wires therefor :
- (12) The Corporation shall to the reasonable satisfaction of the engineer of the Canal Company execute all such fencing and fence walls whether temporary or permanent as may be reasonably necessary for the due protection of the property of the Canal Company by reason of the carrying out of the works by the Corporation :
- (13) The Corporation shall bear and on demand pay to the Canal Company the reasonable expense of the employment by the Canal Company of such inspectors or watchmen (if any) as may be reasonably necessary for watching the construction alteration removal repair and maintenance of the works and for preventing as far as may be all interference obstruction danger and accident likely to arise from any of the

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operations of the Corporation or from the acts or defaults of their contractors or of any person in their employ or otherwise :

- (14) Any question arising between the Corporation and the Canal Company under the provisions of this section or as to anything to be done or not to be done thereunder shall be referred to and determined by a single arbitrator to be appointed on the application of either of them after notice in writing to the other by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such reference and determination.

For protec-
tion of
London
Midland and
Scottish
Railway
Company.

23. The following provisions for the protection of the London Midland and Scottish Railway Company (in this section referred to as "the company") shall unless otherwise agreed in writing between the company and the Corporation apply and have effect in relation to the exercise of the powers of this Part of this Act (that is to say) :—

- (1) The Corporation shall not under the powers of this Act purchase or acquire by compulsion the following lands and property of the company (namely) :—

(a) The lands and property numbered respectively 4 27 29 30 and 30A on the deposited plans and in the deposited book of reference relating to Street Work No. 6;

(b) The lands and property numbered 9 on the said plans and in the said book of reference relating to Street Work No. 9;

but the Corporation may purchase and acquire and the company shall sell and grant accordingly such easements or rights of using so much of the said lands and property as may be reasonably required for the construction and maintenance of Street Work No. 6 and Street Work No. 9 (in this section together with Street Work No. 10 referred to as "the street works") :

- (2) Before the Corporation commence to carry out Street Work No. 6 they shall to the reasonable approval of the company fence off the said lands

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numbered 29 and 30 on the deposited plans in relation to that street work fronting to such work and shall to the like approval provide a suitable gate in each fence at points to be selected by the company. Provided that notwithstanding the erection of such fences the company shall have full and free right of access as frontagers to the road to be constructed along the said work :

- (3) The Corporation shall before they commence the construction of so much of any of the street works as shall or may pass over or under or adjoin or in any way affect the railways works or property of the company submit to the principal engineer of the company (in this section called "the principal engineer") plans sections and specifications of the street works proposed to be carried out by the Corporation for the reasonable approval of the principal engineer and on such plans shall show the stages by which it is intended to carry out the street works. Provided that if within one month from the submission of such plans sections and specifications the principal engineer does not signify to the Corporation his disapproval thereof and his requirements in regard thereto he shall be deemed to have approved thereof :
- (4) The street works shall be constructed only according to such plans sections and specifications as shall be approved or deemed as aforesaid to be approved by the principal engineer or determined by arbitration and shall be constructed under the superintendence (if given) and to the reasonable satisfaction of the principal engineer :
- (5) The Corporation shall not themselves execute any of the works necessary for the taking down or rebuilding of the existing bridges carrying the railways of the company or the construction of new bridges under the railways necessary in connection with the construction of Street Works No. 6 and No. 9 nor shall they interfere with the railways at the site of such bridges nor with the traffic on the railway but the company shall (if required in writing by the Corporation so to

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do) forthwith take down and reconstruct the bridge or make all such alterations therein or carry out such other works as may be required by the Corporation and any temporary works which may be reasonably necessary to support and to insure the safety of the railways works and property of the company in order to admit of the construction of the street works under the railway of the company to the reasonable satisfaction of the surveyor and in accordance with the plans sections specifications and particulars submitted and approved as aforesaid and with detailed drawings to be prepared by the principal engineer and reasonably approved by the surveyor :

- (6) If any work is carried out by the company as aforesaid the Corporation shall repay to the company all sums properly expended by them from time to time in or about the preparation of detailed drawings the construction and carrying out of the work and upon the materials required for the same including all reasonable costs of any necessary inspectors and watchmen and of the preparation and settlement of any plans sections and specifications of such works and materials and if any such payments shall not be made by the Corporation within two months after demand the Corporation shall pay interest thereon (except in respect of so much thereof as may be in dispute) at the rate of five per centum per annum from the date of such demand and the Corporation shall upon the completion of the works to be executed by the company also pay to them such a sum as shall be agreed between the company and the Corporation or determined by arbitration by way of composition for and in satisfaction of all claims by the company in respect of the additional expense of maintenance of the said bridge arising from any increase in length or alteration in the form of construction effected under the powers of this Act :

- (7) The new reconstructed or altered bridges and the materials therein shall be and remain the property of the company and shall at all times

be properly maintained by them as part of their railways and works but the road and footways under the bridges shall be formed and paved metalled or asphalted and channelled and flagged and maintained by and at the expense of the road authority : A.D. 1928.
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- (8) The Corporation shall before carrying out so much of the street works as will be below the existing level of the ground construct such retaining walls or other works as may be reasonably necessary to support the railway works and property of the company :
- (9) If it shall be reasonably necessary at any time (either before or during the construction or within five years after the completion of the street works or any part thereof and in consequence of such construction) that any further or other works or appliances be constructed or measures of precaution taken either by way of addition to the existing works of the company or in connection with the street works or in relation to the method of construction of the street works so as to prevent the subsidence of or injury to any of the railways works or property of the company the Corporation shall on being thereunto reasonably required in writing under the hand of the principal engineer make and execute at their own expense and according to plans sections and specifications to be prepared by him and reasonably approved by the surveyor such works or take such measures of precaution including the temporary cessation of the construction of the street works as the principal engineer shall reasonably require The construction of the street works when commenced shall proceed without cessation except as aforesaid and with all reasonable dispatch :
- (10) Notwithstanding the approval of plans sections and specifications or supervision by or completion to the satisfaction of the principal engineer as aforesaid and notwithstanding the compliance by the Corporation with the provisions of this section if during and in consequence of the execution of the street works the said railway

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of the company or any of the works connected therewith or any property of the company shall be injured or damaged the company shall be entitled forthwith to make good such injury or damage and may recover the amount reasonably expended in so doing from the Corporation :

- (11) The Corporation shall not in executing the street works in any manner obstruct hinder or interfere with the free uninterrupted and safe user of the railway and property of the company or any traffic thereon and if the free and uninterrupted user of the railway of the company or any traffic thereon shall be obstructed hindered or interfered with by the Corporation contrary to this enactment the Corporation shall notwithstanding any approval as aforesaid pay to the company all reasonable costs and expenses to which the company may be put and compensation for the loss sustained by the company by reason of any such interruption or interference :
- (12) The Corporation shall be responsible for and make good to the company all costs charges losses damages and expenses which may be occasioned to their railways works or property or to any person or persons using the same by reason of the construction of the street works or of any act or omission of the Corporation or of any of the persons in their employment or of their contractors and the Corporation shall effectually indemnify and hold harmless the company from all claims and demands upon or against them by reason of such construction or omission :
- (13) If by reason of or during the construction of the street works it shall become necessary in the opinion of the principal engineer to add to or alter any signal or signal apparatus or telegraphs on the railway of the company the same may be so added to or altered by the company and the reasonable expense thereof shall be repaid by the Corporation to the company :
- (14) If the company shall at any time after the construction of the Street Works No. 9 and No. 10 desire to widen alter or extend their

railway or any of the works or conveniences connected therewith by the addition thereto of not more than two lines of rails adjoining the existing railway of the company the Corporation shall give to the company every reasonable facility (in so far as they lawfully can or may) for the execution of such widening alteration or extension and any additional expense which the company may reasonably incur in carrying out any such widening alteration or extension by reason of the construction of the said Street Works No. 9 and No. 10 shall be repaid to them by the Corporation :

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- (15) Any difference which shall arise between the Corporation and the company or their respective engineers under this section other than subsection (1) thereof shall be referred to and determined by an arbitrator to be appointed on the application of either party by the President of the Institution of Civil Engineers and subject thereto the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

24. All lands acquired by the Corporation under this Act and laid into or appropriated as part of any street shall form part of that street and shall be maintained and repaired in all respects as the rest of that street is for the time being by law maintained and repaired.

Lands laid into streets to form part thereof.

25. The quantity of the common or commonable lands known as Upper Green in the urban district of Tettenhall which may be taken by the Corporation under the powers of this Act shall not exceed two hundred and seventy-seven square yards.

Limiting quantity of common lands to be taken.

26. Subject to the provisions of this Act the Corporation may for the purposes hereinafter mentioned enter on take and use the lands hereinafter referred to (namely) :—

Power to acquire further lands.

- (a) For the purpose of adding the same to the common or commonable lands known as Upper Green—

the lands in the urban district of Tettenhall delineated on the deposited plans and described in the deposited book of reference (relating to land to be added to Upper Green

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—

in lieu of lands to be acquired for street widening purposes) and numbered 1 2 and 3 on those plans and in that book of reference;

- (b) For the provision of space for the erection of buildings adjoining or near to Work No. 6 authorised by the Act of 1925—

the lands in the borough delineated on the said plans and described in the said book of reference (relating to land and premises to be acquired for the provision of such space) which lands are numbered 1 and 2 on those plans and in that book of reference;

- (c) For the extension and improvement of the technical college in Wulfruna Street—

the lands in the borough delineated on the said plans and described in the said book of reference (relating to land to be acquired for such extension and improvement) which lands are numbered 1 2 and 3 on those plans and in that book of reference;

- (d) For the deposit and disposal of refuse—

the lands in the borough delineated on the said plans and described in the said book of reference (relating to lands (with right of way thereto) to be acquired for such deposit and disposal) which lands are numbered 1 and 3 on those plans and in that book of reference together with a right of way over the lands numbered 2 on those plans and in that book of reference.

As to Upper
Green.

27.—(1) Before or simultaneously with the acquisition of the portion of Upper Green which the Corporation are by this Act authorised to enter upon take and use for the purpose of Street Work No. 5 authorised by this Act the Corporation shall acquire all interest not held by them at the date of this Act in the lands numbered 1 2 and 3 in the urban district of Tettenhall upon the deposited plans relating to land to be added to Upper Green in lieu of lands to be acquired for street widening purposes.

(2) So soon as the Corporation shall have acquired all such interests in the said lands numbered 1 2 and 3

upon the deposited plans the same shall thenceforth by virtue of this Act be added to and form part of Upper Green and shall be subject to the scheme made under the Commons Act 1899 relating to Upper Green and the bye-laws made by the Tettenhall Urban District Council thereunder.

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(3) (a) The Corporation shall at their own expense remove the fence which separates the said lands numbered 1 2 and 3 from Upper Green and shall at the like expense and to the reasonable approval of the Tettenhall Urban District Council erect a fence for the purpose of dividing the said lands from all lands (other than Upper Green) adjoining the same and lay down turf upon the said lands.

(b) Any question arising between the said council and the Corporation under the provisions of this section shall failing agreement be determined by arbitration.

28. The powers of the Corporation for the compulsory purchase of lands for the purposes of this Part of this Act other than the section thereof of which the marginal note is "Power to acquire further lands" shall cease after the expiration of five years and for the purposes of that section after the expiration of three years from the first day of October nineteen hundred and twenty-eight.

Period for compulsory purchase of lands.

29.—(1) The Corporation may stop up and discontinue as public highways—

Power to stop up roads.

(a) that part of Elston Hall Lane in the parish of Bushbury which lies between points one hundred and forty yards and fifteen yards respectively measured in a south-easterly direction from the junction of that lane with Ford House Road;

(b) that part of Three Tuns Lane in the borough which lies between points four hundred and twenty-three yards and three hundred and fifty yards respectively measured in a south-easterly direction from the junction of Three Tuns Lane with Stafford Road;

and thereupon all rights of way over those portions of the said lanes shall be extinguished but the same shall not be stopped up under or in pursuance of the provisions of this section except with the consent of the

A.D. 1928. owners lessees and occupiers of all lands on both sides thereof nor until (in the case of Elston Hall Lane) Street Work No. 9 and (in the case of Three Tuns Lane) Street Work No. 10 has been completed and is open for traffic.

(2) The Corporation shall make full compensation to all parties interested in respect of any private rights of way extinguished by virtue of this section and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement.

(3) The portions of the above-mentioned lanes so stopped up and discontinued shall vest in and become the property of the owners of lands adjoining thereto in proportion to the extent of their lands respectively adjoining the same as from the date upon which they are so stopped up and discontinued.

Compensa-
tion in case
of recently
created
interest.

30. For the purpose of determining any question of disputed compensation payable in respect of lands taken under the powers of this Act the following provisions shall apply and have effect (that is to say):—

(1) The tribunal shall not take into account any building erected or any improvement or alteration made or any interest in land created after the seventeenth day of November nineteen hundred and twenty-seven and before the date of the passing of this Act if in the opinion of the tribunal the erection of the building or the making of the improvement or alteration or the creation of the interest in respect of which the claim is made was not reasonably necessary and was carried out with a view to obtaining or increasing compensation under this Act:

(2) Subject as is hereinafter in this section provided the tribunal shall not take into account—

(a) any building erected after the date of the passing of this Act or any improvement or alteration of any premises (other than any improvement or alteration reasonably necessary for properly maintaining such premises) made after that date which in the opinion of the tribunal materially enhances the value of such premises; or

(b) any interest in land greater than that of a quarterly tenant created after the date of the passing of this Act: A.D. 1928.

- (3) If at any time after the date of the passing of this Act and before the expiration of the period limited by this Act for the compulsory purchase of lands any person being the owner of or having any estate or interest in any premises which are liable to be acquired compulsorily under the powers of this Act gives notice in writing to the Corporation of his intention to erect any building upon or to make any improvement or alteration of or to create any such new interest as aforesaid in those premises (such intended building improvement alteration or new interest being specifically described in the notice) and the Corporation do not within one month after receiving any such notice serve upon such person notice to sell and convey or release his estate or interest in the said premises but serve such notice at any time after the expiration of the said period of one month—

(a) subsection (2) of this section shall not apply with respect to the building improvement alteration or new interest described as aforesaid; and

(b) subsection (1) of this section shall apply with respect to the said building improvement alteration or new interest as if the same had been erected made or created after the said seventeenth day of November and before the date of the passing of this Act :

- (4) The Corporation shall forthwith after the passing of this Act send by post or deliver a copy of this section to all persons named in the deposited book of reference having an interest greater than that of a yearly tenant in any lands which are liable to be acquired compulsorily under the powers of this Act.

31. The Corporation and their surveyors officers and workmen and any person duly authorised in writing under the hand of the town clerk may at all reasonable times upon giving in the first instance twenty-four hours' Power to enter upon property for survey and valuation.

A.D. 1928. — and subsequently twelve hours' previous notice in writing enter upon and into the lands and buildings by this Act authorised to be taken and used or any of them for the purpose of surveying and valuing the said lands and buildings without being deemed trespassers and without being subject or liable to any fine penalty or punishment on account of entering or continuing upon any part of the said lands and buildings.

Benefits to
be set off
against com-
pensation.

32. In estimating the amount of compensation or purchase money to be paid by the Corporation in respect of the acquisition under this Act of any part of the lands of any person the enhancement in value of the adjoining lands of such person not so acquired or of any other lands of such person which are continuous with such adjoining lands arising out of the construction of any new street or of the widening or improvement of any existing street or arising through such adjoining lands becoming lands fronting on any such new or existing street shall be fairly estimated and shall be set off against the said compensation or purchase money.

As to con-
struction
and main-
tenance of
Street Work
No. 9 by
Cannock
Council.

33.—(1) Subject to the provisions of this section the Cannock Council may (with the consent and in lieu of the Corporation) exercise the powers of this Part of this Act for and in connection with the making in the lines and according to the levels shown on the deposited plans and sections of Street Work No. 9 described in the section of this Act of which the marginal note is "Power to construct street works" together with all necessary or proper works and conveniences connected therewith or incident thereto and may (also in lieu of the Corporation) enter on take and use such of the lands delineated on the deposited plans and described in the deposited book of reference as they may require for the construction of that street work and those works and conveniences or for the purpose of providing space for the erection of buildings adjoining or near thereto or for the other purposes of this Part of this Act.

(2) The following provisions of the Act of 1899 of the Act of 1904 of the Act of 1920 and of this Act shall (so far as applicable and with any necessary modifications) apply to and for the purposes of the exercise by the Cannock Council of the powers of this section as if

that council were referred to therein instead of the A.D. 1928.
Corporation (namely):—

The Act of 1899—

Section 6 (Correction of errors &c. in deposited plans and book of reference);

Section 8 (Owners may be required to sell parts only of certain lands and buildings);

Section 9 (Persons under disability may grant easements &c.);

Section 12 (Power to retain sell &c. lands);

Section 13 (Proceeds of sale of surplus lands).

The Act of 1904—

Section 11 (Temporary stoppage of streets).

The Act of 1920—

Section 6 (Subsidiary works);

Section 7 (Limits of deviation);

Section 8 (Extinction of private rights of way).

The sections of this Act of which the marginal notes are—

Lands laid into streets to form part thereof;

Period for compulsory purchase of lands;

Power to stop up roads;

Compensation in case of recently created interest;

Power to enter upon property for survey and valuation;

Benefits to be set off against compensation;

For protection of London Midland and Scottish Railway Company:

Provided that—

- (a) The said section 8 of the Act of 1899 shall for the purposes of such application apply in respect of the premises in the parish of Bushbury which are referred to in the Second Schedule to this Act and those premises shall be the scheduled properties within the meaning of that section;

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(b) Nothing contained in the said section 12 of the Act of 1899 as applied to and for the purposes of this section shall release the Cannock Council or any person purchasing or acquiring any lands from them under that section as so applied from any rents covenants restrictions reservations terms or conditions made payable by or contained in any conveyance lease or other deed or instrument by which any such lands were or may hereafter be conveyed or leased to or otherwise acquired by the Cannock Council or any person from or through whom the Cannock Council may have derived or may hereafter derive title to the same but all such rents covenants restrictions reservations terms and conditions shall remain and be of as full force and effect and may be recovered exercised enjoyed and enforced in like manner and to the same extent as if this section had not been passed;

(c) In the exercise by the Cannock Council of the powers of the said section 11 of the Act of 1904 for the purposes of this Act the Cannock Council shall at all times maintain reasonably sufficient access both for vehicular and pedestrian traffic to the stations and depôts of any railway company.

(3) After the said Street Work No. 9 has been constructed the same shall be maintained and repaired by the Cannock Council.

Power to
develop
lands &c.

34.—(1) The Corporation may lay out and develop any lands within the limits of deviation for the street works authorised by the Act of 1925 and this Act acquired by them under the powers of the Act of 1925 or this Act and not required for the purposes for which they were acquired and (with the consent of the Minister) any other lands at any time belonging to the Corporation and not required for the purposes for which they were acquired and may erect and maintain houses shops offices warehouses and any other buildings and construct sewer drain pave flag channel and kerb streets roads and ways on any such lands and may sell lease exchange or otherwise dispose of any such houses shops offices ware-

houses or buildings upon and subject to such terms. A.D. 1928.
conditions and restrictions as they may think fit.

(2) The Corporation may also grant building leases of any such lands as aforesaid subject to such restrictions and conditions as the Corporation may see fit to impose and may grant any easements rights or privileges in under or over such lands or any part or parts thereof and may use or dispose of the building or other materials of any houses and premises on any lands acquired or appropriated by them which they may deem it necessary or desirable to pull down.

(3) The Corporation in selling or disposing of such lands may attach to the same and may convey or lease the same subject to any conditions and restrictions upon the use thereof and as to the buildings to be erected thereon and as to the use to which such buildings may be put.

(4) The Corporation may enter into and carry into effect agreements and arrangements with the owners of or other persons interested in any lands or buildings which may be acquired under the provisions of the Act of 1925 or this Act or which may be in the neighbourhood of the street works authorised by the Act of 1925 or this Act or any of them with respect to the reinstatement of any such owners or other persons and with respect to the exchange of lands for that purpose and the Corporation may pay or receive money for equality of exchange.

(5) Nothing in this section shall authorise the Corporation to create or permit any nuisance on any such lands as are referred to therein.

(6) The Corporation shall not without the consent of the Minister sell lease exchange or otherwise dispose of any of the lands to which this section applies except at the best price or on the best terms which can be obtained for the same but a purchaser or lessee shall not be concerned to inquire whether the direction of the Minister is necessary or has been obtained.

35.—(1) The Corporation may advance money to the purchaser or lessee of any lands acquired by them under the provisions of the Act of 1925 or under this Part of this Act or under the County Borough of Wolverhampton (Faulkland Street Area) Improvement Scheme 1923 or under any scheme to be made under the Housing

Power to Corporation to advance money for erection of buildings.

A.D. 1928. — Act 1925 in relation to the Brickkiln Croft insanitary area upon the representation dated the sixth day of September nineteen hundred and twenty-seven of the medical officer for the purpose of enabling or assisting him to erect buildings on such land. Provided that any advance shall not exceed two-thirds of the amount which in the opinion of the Corporation will be the market value of the interest of such purchaser or lessee in the land with the intended building erected thereon.

(2) Every such advance shall be repaid with interest at a rate not being less than five per centum per annum or the rate of interest for the time being prescribed by the Minister for the purpose of loans under the Small Dwellings Acquisition Acts 1899 to 1923 (whichever is the less) within such period not exceeding thirty years from the date of the advance as may be agreed upon between the Corporation and such purchaser or lessee.

(3) The repayment may be made either by equal instalments of principal or by an annuity of principal and interest combined and all payments on account of principal and interest shall be made at such periods not exceeding half a year as may be agreed between the said purchaser or lessee and the Corporation.

(4) Any such purchaser or lessee to whom an advance has been made may on any of the dates for periodical payments mentioned in the instrument hereinafter referred to after one month's written notice and on paying all sums due on account of interest repay to the Corporation the whole of the outstanding principal of the advance or any part thereof being one hundred pounds (or such less sum as may be provided in the instrument hereinafter referred to) or a multiple of one hundred pounds (or of such less sum as aforesaid) and where the repayment is made by an annuity of principal and interest combined the amount so outstanding and the amount by which the annuity will be reduced where a part of the advance shall be paid off shall be determined by a table to be annexed to the instrument securing the repayment of the advance.

(5) Before making any advance under this section the Corporation shall be satisfied that the repayment to

them of the advance is secured by an instrument vesting the ownership of the building in respect of the erection of which the advance is made and the land upon which such building is to be erected or the lessee's interest therein in the Corporation subject to the right of redemption by the said purchaser or lessee and requiring the said purchaser or lessee to keep the building insured against fire to the satisfaction of the Corporation and to produce the receipts for the premium paid in respect of such insurance to the Corporation when required by them and to keep the building in good repair.

A.D. 1928.

(6) The Corporation or any person authorised by them in writing shall have power at all reasonable times to enter the building in respect of the erection of which any advance is made by them for the purpose of ascertaining whether the conditions of this section and of the instrument aforesaid are complied with.

(7) The said purchaser or lessee may with the permission of the Corporation (which permission shall not be unreasonably withheld) at any time transfer his interest in the building in respect of which such advance is made and the land upon which the same is erected but any such transfer shall be made subject to the foregoing provisions of this section.

36. The period limited by section 164 (Application of certain provisions of existing Acts) of the Act of 1925 for the compulsory purchase of lands required for and in connection with Street Work No. 10 authorised by that Act is hereby extended until the first day of October nineteen hundred and thirty-one but on that date the powers for such compulsory purchase shall cease except so far as such powers shall have been exercised.

Extension
of time for
compulsory
purchase of
lands.

PART IV.

ELECTRICITY.

37. In this Part of this Act unless the subject or context otherwise requires—

Definitions
for purposes
of this Part
of Act.

- (i) "The added areas" means the following areas (namely):—

(a) Those portions of the borough which prior to the passing of the Act of 1926 comprised the urban district of Heath Town and a part of the parish of Upper Penn;

A.D. 1928.

(b) The urban district of Tettenhall;

(c) The parishes of Patshull, Pattingham and Wrottesley in the Seisdon rural district and so much of the parish of Lower Penn in that rural district as lies to the north and north-west of an imaginary straight line drawn from the point at which the eastern boundary of that parish intersects the southern boundary of the road leading from Upper Penn to Lower Penn Village (which road passes the house known as Spring Hill) to a point two hundred and fifty-two yards measured in a north-westerly direction along the northern boundary of Showell Lane from the point at which the centre line of Bearnett Lane (if projected) would intersect that boundary;

(d) The parishes of Lapley and Wheaton Aston, Stretton Chapelry and Kinvaston in the Cannock rural district and so much of the parish of Penkridge in that rural district as is bounded on the east by the centre line of the Wolverhampton to Stafford main road on the south by the southern boundary of Watling Street and on the west and north by the said parishes of Stretton Chapelry and Kinvaston;

(e) The parishes of Weston-under-Lizard, Tong, Boscobel, Donington, Bonninghall (otherwise Boningale) and Albrighton (including Albrighton detached) in the Shifnal rural district and the parish of Blymhill administered as a part of that rural district;

(f) The parish of Rudge in the Bridgnorth rural district;

- (ii) "The undertaking" means so much of the undertaking of the Midland Corporation as is within the borough, the urban district of Tettenhall and that part of the parish of Lower Penn which is hereinbefore referred to (all of which are in this Part of this Act referred to as "the transferred areas") and includes all lands, buildings, works, materials and plant of the Midland Corporation within the transferred areas suitable to and used by them for the purposes of the undertaking;

(iii) "The date of transfer" means the twenty-fifth day of March nineteen hundred and twenty-nine or such other date as may be agreed between the Corporation and the Midland Corporation. A.D. 1928.

38.—(1) Subject to the provisions of this Part of this Act the added areas shall be added to the area of supply for the purposes of the Wolverhampton Electricity Acts and Orders 1890 to 1925 and the Act of 1925. Extension of electricity limits.

(2) The provisions relating to the supply of electricity contained in the Wolverhampton Electricity Acts and Orders 1890 to 1925 and the Act of 1925 shall so far as applicable and with any necessary modifications extend and apply to the area of supply of the Corporation as extended by this Act.

(3) The Corporation shall within six months from the passing of this Act deposit at the office of the Electricity Commissioners an Ordnance map on a scale of not less than six inches to the mile showing the boundaries of the added areas.

39. Section 20 of the schedule to the Electric Lighting (Clauses) Act 1899 in its application to the Corporation shall have effect as if after the words "electric signalling communication" wherever they occur there were inserted the words "or electrical control of railways." For protection of railway companies.

40.—(1) The Corporation shall lay down suitable and sufficient distributing mains for the purposes of general supply— Compulsory works.

(a) within a period of two years after the passing of this Act along High Street in the parish of Albrighton from Albrighton Hall to St. Cuthbert's;

(b) within a period of three years after the passing of this Act along the following streets in the parish of Pattingham (namely):—

(i) The main street of Pattingham Village from a point on the Wolverhampton Road three hundred yards or thereabouts east of the junction of that road with Clive Road and Westbeech Road to a point at or near to the junction of Rudge Road and Chesterton Road;

A.D. 1928.

(ii) Clive Road from the main street of Pattingham Village to the junction of that road with Moor Lane;

(iii) Westbeech Road from its junction with the main street of Pattingham Village to a point opposite the public elementary schools.

(2) If at the expiration of three years from the passing of this Act or within such extended period as the Minister of Transport by order under the hand of an assistant secretary may allow suitable and sufficient distributing mains shall not have been laid down in any parish mentioned in the section of this Act whereof the marginal note is "Extension of electricity limits" (other than the said parishes of Albrighton and Pattingham) the Minister of Transport may by order as aforesaid prescribe that the powers by this Part of this Act conferred upon the Corporation in respect of such parish shall cease as from the date of the said order.

For protec-
tion of
Shropshire
County
Council.

41.—(1) Nothing in this Part of this Act shall in any way limit or affect the powers of the Shropshire County Council (in this section referred to as "the county council") to rebuild alter widen or repair the structure of any bridge upon which any work authorised by this Part of this Act shall be constructed or impose upon the county council any liability which was not by law imposed upon them prior to the passing of this Act.

(2) If at any time the county council require to carry out works for rebuilding altering widening or repairing any bridge which might involve interference with any portion of the undertaking authorised by this Part of this Act they shall prior to the commencement of such works give the Corporation one calendar month's notice in writing of their intention to carry out such works and if in order to avoid interruption to the supply by the Corporation of electrical energy it is in the opinion of the county council necessary temporarily to remove the mains and other electrical appliances belonging to the Corporation from such bridge then the Corporation shall (and they are hereby authorised so to do) at their own expense temporarily carry their cables and wires across such bridge overhead or at the side thereof in such a manner as will not be a danger or inconvenience to the public or unreasonably interfere with the works to be carried out by the county council.

(3) When the rebuilding altering widening or repairing of such bridge shall have been completed the Corporation shall have the same rights and powers with regard to such bridge and its approaches as they had before the works were carried out. A.D. 1928.
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(4) If any dispute arises between the county council and the Corporation with regard to this section the same shall be determined by an arbitrator to be appointed on the application of either party by the Minister of Transport.

42. Subject to the provisions incorporated with the *Wolverhampton Electricity Acts and Orders 1890 to 1925* and the Act of 1925 the Corporation are specially authorised by this Act to break up the streets and parts of streets not repairable by the local authority which are coloured red upon the map signed in triplicate by Colonel Abraham England the Chairman of the Committee of the House of Commons to which the Bill for this Act was referred one copy of which has been deposited in the Parliament Office of the House of Lords one in the Committee and Private Bill Office of the House of Commons and one with the Town Clerk in his office. Power to
break up
streets &c.

43.—(1) The Corporation and the Midland Corporation may notwithstanding anything contained in the Act of 1904 or any other enactment enter into and carry into effect agreements for and in relation to the purchase by the Corporation from the Midland Corporation of the undertaking as from the date of transfer Provided that the Corporation and the Midland Corporation may expressly exclude from any such purchase any funds capital or book or other debts of the Midland Corporation and any lands buildings works materials and plant which would otherwise form part of the undertaking and which are required by the Midland Corporation for the purposes of their undertaking outside the transferred areas. As to pur-
chase of
part of
undertaking
of Midland
Corpora-
tion.

(2) The price or consideration to be paid by the Corporation to the Midland Corporation in respect of the purchase referred to in subsection (1) of this section shall be such sum as may be agreed upon between the Midland Corporation and the Corporation and shall be paid by the Corporation to the Midland Corporation on the date of transfer and as from the date upon which the said price or consideration is paid by the Corporation

A.D. 1928. — to the Midland Corporation the undertaking (except any funds capital book or other debts lands buildings works materials and plant excluded therefrom as aforesaid) shall by virtue of this Act become and shall thenceforth be transferred to and vested in the Corporation freed from all charges debts and other liabilities upon or affecting the same.

(3) Any agreement entered into between the Corporation and the Midland Corporation prior to the passing of this Act in relation to the matters aforesaid or any of them shall have effect as fully as if the same were entered into immediately after the passing of this Act.

(4) Until the date of transfer the provisions of the section of this Act of which the marginal note is "Extension of electricity limits" shall not come into operation in respect of the transferred areas.

(5) As from the date of transfer—

(a) The Midland Corporation may (notwithstanding anything contained in this Part of this Act or done in pursuance thereof) for the purpose of facilitating the supply of electricity within their area for the time being for the supply of electricity break up any streets or parts of streets within the transferred areas which they are empowered to break up immediately prior to the date of transfer and may lay down or place electric lines or other works (except overhead lines) therein and the Midland Corporation shall in respect of the said streets and parts of streets and the electric lines and works therein have the same rights and be subject to the same obligations and liabilities (other than rights obligations and liabilities in regard to the supply of electricity) as they would have and be subject to if the same streets and parts of streets electric lines and works were situate within their area for the time being for the supply of electricity and the said streets and parts of streets were broken up for the purposes of general supply;

(b) The enactments hereinafter mentioned and the schedules referred to in those enactments

respectively shall apply and have effect in relation to the undertaking as if the Corporation were therein referred to instead of the Midland Corporation (namely):—

A.D. 1928.

Section 10 (Powers for execution of works) of the Midland Electric Power Distribution and Lighting Order 1898;

Section 9 (Works) of the Midland Electric Power Distribution and Lighting (Extension) Order 1899;

Section 9 (Works) of the Midland Electric Power Distribution and Lighting (Extension) Order 1900;

Section 9 (Works) of the Midland Electric Power Distribution and Lighting (Extension) Order 1901;

Section 5 (Power to break up streets) of the Midland Electricity Power Distribution and Lighting (Extension) Special Order 1926;

- (c) Save as aforesaid the provisions of the Midland Electricity Power Distribution and Lighting Orders 1898 to 1926 shall cease to apply to or in respect of the undertaking but nothing in this Part of this Act shall be deemed to take away lessen prejudice affect or interfere with the rights powers and privileges of the Midland Corporation within their limits of supply so far as such limits are not included within the transferred areas.

(6) Not later than the tenth day before the twenty-fifth day of March nineteen hundred and twenty-nine or such other date as may be agreed between the Corporation and the Midland Corporation to be the date upon which the said transfer is to take effect the Corporation shall give notice by public advertisement in a newspaper published or circulating in the transferred areas of the following (namely):—

- (a) the date upon which the said transfer is to take effect;
- (b) the provisions of the section of this Act of which the marginal note is "Extension of electricity limits"; and
- (c) the provisions of this section.

A.D. 1928.

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Corporation
to bear cer-
tain ex-
penses of
change of
system.

44. If at any time after the date of transfer the Corporation alter the system of supplying electricity then existing in those parts of the added areas which are included in the borough the urban district of Tettenhall and the parish of Lower Penn any expense necessarily resulting from such alteration incurred in adapting the existing electrical apparatus of consumers in such parts of the added areas shall be borne by the Corporation and such adaptation shall at the option of the Corporation be carried out by the Corporation or by the consumer to the reasonable approval of the Corporation.

As to prices.

45.—(1) Notwithstanding anything contained in the Wolverhampton Electricity Acts and Orders 1890 to 1925 or any other previous enactment or this Act—

- (a) The prices to be charged by the Corporation for electricity supplied by them in the urban district of Tettenhall and the portion of the parish of Lower Penn which forms part of the added areas shall not exceed the prices for the time being charged by them for a corresponding supply within the borough;
- (b) Until the twelfth day of August nineteen hundred and forty the prices to be charged for general lighting purposes by the Corporation for electricity supplied by them within the urban district of Tettenhall shall not exceed the prices which are provided for in the agreement which is cancelled and annulled by subsection (2) of this section, namely the rate of sixpence for each unit supplied and in addition a quarterly meter rent (whether a meter is used or not) in accordance with the scale set out in Part I of the Third Schedule to this Act. Provided that such rate of sixpence per unit shall be reduced in accordance with the table of discounts set out in Part II of the said Third Schedule if the amount due to the Corporation in respect of the supply is paid by the consumer within such time after the receipt of the demand for the same as may be specified in such demand or before such date as may be specified therein.

(2) The agreement dated the eighteenth day of June nineteen hundred and twenty-six and made

between the Tettenhall Urban District Council of the one part and the Midland Corporation of the other part shall be cancelled and annulled as from the date of transfer. A.D. 1928.

PART V.

WATER.

46.—(1) The Corporation may subject to the provisions of the Act of 1869 with respect to the breaking up of streets for the purpose of laying pipes construct place fix and maintain in or under any street within the borough and with the consent of the road authority any street outside the borough which is within the limits within which the Corporation are authorised to supply water in detail tanks or other receptacles for water for use by the users of mechanically propelled vehicles with all necessary or convenient apparatus and appliances (including covers or boxes and pillars or standpipes projecting above the level of the surface of the street) for taking or using water from such tanks or receptacles. Power to provide water tanks under streets.

(2) The Corporation may make and recover such charges as they may think fit for any water so taken or used and make regulations as to the taking or use of such water and the issuing of permits for such taking or use and the mode of payment of the charges of the Corporation therefor.

(3) If any person shall take or use any water from any such tank or receptacle as aforesaid without being duly authorised so to do by the Corporation he shall be deemed to have committed an offence under section 169 (Penalty for use of water without agreement) of the Act of 1869.

(4) The Corporation may attach to any lamp-post pole or standard or other similar erection erected on or in any street under or near to which any such tank or other receptacle is constructed or placed signs or directions indicating the position of such tank or other receptacle and the means by which water may be obtained from the same and may in any such street as aforesaid erect place fix and maintain posts or poles for carrying such signs or directions:

Provided that—

(a) The Corporation shall not erect place fix or maintain any such posts or poles in any part

A.D. 1928.

of the highway without the consent of the road authority;

- (b) In cases where the Corporation are not the owners of such lamp-post pole standard or similar erection they shall give notice in writing to the owner of their intention to attach thereto any such sign or direction and shall make compensation to the owner for any damage or injury occasioned to the lamp-post pole standard or similar erection by the attachment and the Corporation shall indemnify the owner against any claim for damage occasioned to any person or property by or by reason of the attachment;
- (c) The Corporation shall not attach any signs or directions to any post pole or standard belonging to the Postmaster-General except with his consent in writing;
- (d) Nothing in this section shall be deemed to require the owner to retain any such lamp-post pole standard or similar erection when no longer required for his purposes.

(5) The Corporation shall not under the powers of this section construct or place any such tank or receptacle or any appliances in connection therewith or any posts or poles on any bridge or the approaches thereto carrying any street or road over the railway of any railway company or under any bridge carrying any such railway over any street or road or within ten feet of any abutment of such bridge or so as to interfere with or render less convenient the access to or exit from any station or depôt of such company nor shall the Corporation attach any signs or directions to any lamp-post standard or similar erection belonging to a railway company except with the consent of such railway company.

Supply of
water to
houses
partly used
for trade
&c.

47.—(1) The Corporation shall not be bound to supply with water otherwise than by meter (a) any building used by an occupier as a dwelling-house whereof any part is used by the same occupier for any trade or manufacturing purpose for which water is required or (b) any workhouse public institution hospital nursing home asylum (whether public or private) sanatorium

club hotel public-house inn public assembly hall restaurant or school or (c) any boarding-house capable of accommodating twenty or more persons including the persons usually resident therein.

A.D. 1928.
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(2) Where a supply of water to a farm-house is used for farming purposes the Corporation may require that the supply for farming purposes shall be taken by meter but nothing in this section shall authorise the Corporation to refuse a supply of water for domestic purposes to a farm-house at the ordinary rate calculated on the rateable value thereof.

(3) The price to be charged by the Corporation for a supply of water by meter under this section shall not exceed three shillings per one thousand gallons except that the minimum quarterly charge for a supply of water by meter to any of the premises in this section mentioned shall be one-fourth of the annual amount which would be payable according to the scale for the time being in force for a domestic supply furnished to a dwelling-house of the same rateable value.

(4) Section 31 (Supply to houses partly used for trade) of the Act of 1915 and section 39 (Amendment of section 31 of Act of 1915) of the Act of 1920 are hereby repealed.

48. When water supplied by the Corporation for domestic purposes is used for washing horses carriages or motor cars or for other purposes in premises where horses carriages or motor cars are kept for private use the Corporation may if a hose-pipe or other similar apparatus is used charge such additional sum not exceeding twenty-five shillings per annum (and where more motor cars than one are ordinarily kept a further sum not exceeding ten shillings per annum for each motor car beyond the first as the Corporation may prescribe) and any sum charged under the provisions of this section shall be paid half-yearly in advance and be recoverable in the same manner as water rents.

Supply of
water by
hose-pipe to
stables &c.

49.—(1) Notwithstanding anything in any Act or Order relating to the Corporation a person shall not be entitled to demand or continue to receive from the Corporation a supply of water to any caravan shack hut tent or other like structure unless he has agreed with the Corporation to take a supply of water by meter and to

Special
terms for
supplies to
caravans
&c.

A.D. 1928. pay to the Corporation such minimum annual sum as will give them a reasonable return on the capital expenditure incurred by them in providing the supply or supplies required by him and will cover other standing charges incurred by them in order to meet the possible maximum demand for his caravan shack hut tent or structure and will yield a reasonable return on the cost of the water consumed or used by him and unless he has secured to the reasonable satisfaction of the Corporation by way of deposit or otherwise payment of such a sum as may be reasonable having regard to the possible maximum demand of such person for his caravan shack hut tent or structure.

(2) The sum to be so paid and the security to be so given shall be determined in default of agreement by a court of summary jurisdiction who may also order by which of the parties the costs of the proceedings before them shall be paid and the decision of the court shall be final and binding on all parties.

Water rent
in case of
two or more
houses in
one occupa-
tion.

50. Where two or more houses or buildings are connected by any internal means of communication or by any bridge subway yard or passage not being a public highway and such houses or buildings are in the occupation of one and the same company or person they shall be deemed for domestic water rent purposes to be one tenement having a rateable value equal to the aggregate rateable values of the two or more houses or buildings.

Compound-
ing of water
rents.

51.—(1) Where the rateable value of any hereditament (excluding agricultural land) does not exceed such sum as may be determined by the Corporation by resolution within the limit prescribed by section 11 (1) of the Rating and Valuation Act 1925 or by any enactment amending that section or if the Corporation so determine in any case where any hereditament is let for a rent which becomes payable at any period less than quarterly the owner instead of the occupier shall be primarily liable for the payment of the water rent for any such hereditament as aforesaid.

(2) For the purpose of this section the person receiving the rents of any such house or tenement from the occupier thereof on his own account or as agent or receiver for any person interested therein shall be deemed the owner of such house or tenement and it shall be lawful for the Corporation to take proceedings for the recovery

of water rent against any one or all of such persons either at the same or different times but such water rent may be recovered by the Corporation from the occupier and may (if the occupier be not himself liable therefor under any lease or agreement) be deducted by him from the rent from time to time due from him to the owner provided that no greater sum shall be recovered at any one time from any such occupier than the amount of rent owing by him or which shall accrue due from him subsequent to the service upon him of a notice to pay the water rent. . . .

A.D. 1928.

(3) Where an owner is liable to pay water rent under the provisions of this section and is willing to undertake to pay such water rent whether the dwelling-house or tenement is occupied or not the Corporation may make him an allowance of such an amount as may be determined by the Corporation by resolution from time to time not exceeding fifteen per centum of that portion of the water rent which is calculated by reference to rateable value provided that such an allowance shall not be made unless the amount due is paid before the expiration of one-half of the period in respect of which the water rent is payable.

(4) Where an owner has given an undertaking under the provisions of the last preceding subsection of this section six months' notice to terminate the same may be given and such notice shall be given before the commencement of the period of charge on the expiration of which it is to take effect.

(5) Section 157 (Owners of houses not exceeding ten pounds rent to be liable to water rents) of the Act of 1869 and section 7 (Water rents payable by owners of small houses) of the Act of 1908 are hereby repealed.

52. Section 161 (Power to enter houses to inspect &c.) of the Act of 1869 shall be read and have effect as if the words "six in the afternoon" were therein inserted instead of the words "four in the afternoon."

Amendment
of section
161 of Act
of 1869.

53. The provisions of section 139 (Corporation to lay pipes &c. on requisition) of the Act of 1869 shall be read and construed as if the words "one-eighth" were therein substituted for the words "one-tenth" and as if the words "at the rate specified in this Act" were omitted therefrom.

Amendment
of section
139 of Act
of 1869.

A.D. 1928.

PART VI.

SANITARY PROVISIONS.

Medical
practition-
ers to notify
cases of food
poisoning.

54.—(1) Every medical practitioner attending on a person who is or is suspected to be suffering from food poisoning shall forthwith on becoming aware that such person is or is suspected to be so suffering send to the medical officer a notification of the case stating the name of such person and the place at which such person is.

(2) The Corporation shall pay to every medical practitioner for each notification duly sent by him in accordance with this section a fee of two shillings and sixpence if the case occurs in his private practice and of one shilling if the case occurs in his practice of medical officer of any public body or institution.

(3) Every person required by this section to give notice who fails to give the same in accordance with this section shall be liable to a penalty not exceeding forty shillings.

Restriction
on taking
inedible fats
into pre-
mises where
food is pre-
pared.

55. Any person taking or introducing or causing to be taken or introduced any fats which are unfit for food into any premises in which food into the composition of which fat enters is manufactured or prepared for sale or into any premises directly or indirectly connected by a passage or pipe or in any other way with any such premises (except so far as such passage pipe or other connection as the case may be is required or used for sanitary or other similar purposes and not in connection with the manufacture or preparation hereinbefore mentioned) shall for each offence be liable to a penalty not exceeding five pounds unless he can prove that such fats were not taken or introduced into such premises for the purpose of being used and have not been used as an ingredient in the manufacture or preparation of food.

Prohibition
of tents
vans &c.

56.—(1) (a) No tent van shed or similar structure used or intended to be used for human habitation shall be placed or kept on any land situate within the borough without the previous approval of the Corporation.

(b) It shall not be lawful for any person without the previous consent of the Corporation to let or permit to be used any land for occupation by any tent van shed

or similar structure used or intended to be used for human habitation unless and until such land is provided with sufficient roads and sewers and furnished with a separate supply of water to the satisfaction of the Corporation.

A.D. 1928.
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(2) Any person aggrieved by the withholding by the Corporation of any approval or consent under the provisions of this section may within twenty-one days from the date of the decision of the Corporation appeal to a court of summary jurisdiction and such court may make such order in the premises and on such terms and conditions as to the court may seem just. The costs of any such appeal shall be paid in such manner and by such parties to the appeal as the court may direct.

(3) This section shall not apply to (a) a tent van shed or similar structure which is not used or intended to be used by the occupier as a sole or principal means of habitation for an unbroken period of at least three months or (b) any person dwelling in a tent or van or other similar structure who is a roundabout proprietor travelling showman or stallholder not being a pedlar or hawker.

(4) Any person offending against the provisions of this section shall be liable to a penalty of five pounds and to a daily penalty not exceeding twenty shillings.

57.—(1) Section 114 (As to ashpits) of the Act of 1925 is hereby repealed.

As to ash-
pits.

(2) Any ashpits existing at the date of this Act shall if required by the Corporation and to their reasonable approval be converted by the owner of the premises upon which the same exist into a receptacle in which the dustbin or dustbins provided in respect of such premises shall be placed and one-half of the reasonable cost of such conversion shall be repaid to the owner by the Corporation.

58.—(1) Section 115 (As to dustbins) of the Act of 1925 and the proviso to section 46 (Regulation dustbins) of the Act of 1904 (so far as that proviso relates to ashpits) are hereby repealed.

As to dust-
bins.

(2) After such date as the Corporation may by resolution determine all dustbins at any time in use

A.D. 1928. within the borough for the deposit or collection of refuse from any dwelling-house shall be or become the property of the Corporation.

(3) In any case in which the Corporation are authorised to require the owner or occupier of any dwelling-house to provide an ashpit or a dustbin the Corporation may themselves provide a dustbin and the cost of providing the same shall be repaid to the Corporation by such owner or occupier on demand. Provided that where the owner of any dwelling-house at the requirement of the Corporation converts an ashpit into a receptacle for a dustbin or dustbins in accordance with the provisions of the last preceding section of this Act one-half only of such cost shall be so repaid to the Corporation by such owner or occupier.

(4) In any case in which the Corporation provide a dustbin under the provisions of the last preceding subsection of this section or any other enactment they may (without prejudice to any other mode of recovering the cost) recover the cost thereof in the same manner as a water rent or charge from the person who pays the water rent or charge in respect of the dwelling-house in respect of which the dustbin is provided.

(5) All dustbins being or becoming the property of the Corporation shall thereafter be maintained in proper order and condition by the Corporation and shall be renewed by them when necessary.

(6) The person who pays the water rent or charges in respect of any dwelling-house in respect of which a dustbin or dustbins is or are maintained by the Corporation under the provisions of this section shall pay to the Corporation in respect of each dustbin such sum not exceeding three shillings per annum as the Corporation may from time to time (subject to the provisions of this section) determine and any sum due to the Corporation under the provisions of this section from any such person shall be payable in advance half-yearly or may be collected with the water rent or charges and may (without prejudice to any other method of recovery) be recovered with and in the same manner as that rent or those charges. Provided that where two or more persons are liable for the payment of water rent or charges in respect of a dwelling-

house or dwelling-houses for which a dustbin or dustbins is or are maintained by the Corporation the charge authorised by this subsection may be collected and recovered from such persons in such proportions as the Corporation may determine to be reasonable.

(7) The Corporation may recover any sum due to them under this section from the occupier of the dwelling-house in respect of which a dustbin or dustbins is or are maintained by the Corporation and any occupier paying any sum due to the Corporation under the provisions of this section may (in cases where any sum so paid is payable by the owner of the premises) deduct any sum so paid by him from the amount of rent payable by him to the owner of the dwelling-house in respect of which the dustbin or dustbins is or are maintained.

(8) The Corporation shall pay all moneys received by them for the purposes of this section into the general rate fund and shall pay all expenses incurred by them thereunder out of the general rate fund and the Corporation shall keep an account of all such receipts and expenses.

(9) The said account shall be kept so as to secure that (as far as may be reasonably practicable) taking one year with another the receipts of the Corporation under this section shall meet the expenses incurred by them thereunder and any balance standing to the credit or debit of the said account shall be carried forward and taken into account by the Corporation in fixing the charges to be made by them under the provisions of subsection (6) of this section.

PART VII.

FINANCIAL AND MISCELLANEOUS PROVISIONS.

59.—(1) The Corporation may from time to time independently of any other borrowing power borrow at interest for and in connection with the purposes mentioned in the first column of the following table the respective sums mentioned in the second column thereof and in order to secure the repayment of the said sums and the payment of interest thereon they may mortgage

Power to
borrow.

A.D. 1928. — or charge the respective revenue fund and rate mentioned in the third column of the said table and they shall pay off all moneys so borrowed within the respective periods (each of which is in this Act referred to as "the prescribed period") mentioned in the fourth column thereof (namely):—

1	2	3	4
Purpose.	Amount.	Charge.	Period for Repayment.
	£		
(a) The purchase of lands for the construction of the street works authorised by this Act and for other purposes thereof.	The sum requisite.	The general rate fund and general rate.	Sixty years from the date or dates of borrowing.
(b) The construction of the street works authorised by this Act.	68,900	The general rate fund and general rate.	Thirty years from the date or dates of borrowing.
(c) The provision of trolley vehicles.	40,000	The revenue of the tramway undertaking of the Corporation and the general rate fund and general rate.	Ten years from the date or dates of borrowing.
(d) The provision of electrical equipment and the construction of other works necessary for working the trolley vehicle routes authorised by this Act.	31,000	The revenue of the tramway undertaking of the Corporation and the general rate fund and general rate.	Twenty years from the date or dates of borrowing.
(e) The provision of omnibuses.	40,000	The revenue of the tramway undertaking of the Corporation and the general rate fund and general rate.	Eight years from the date or dates of borrowing.

A.D. 1928.

1	2	3	4
Purpose.	Amount.	Charge.	Period for Repayment.
(f) The erection of buildings for the purposes of the trolley vehicles or omnibuses of the Corporation.	£ 36,500	The revenue of the tramway undertaking of the Corporation and the general rate fund and general rate.	Thirty years from the date or dates of borrowing.
(g) The payment of the purchase money under any agreement made in pursuance of the section of this Act of which the marginal note is "As to purchase of tramways light railways &c."	The sum requisite.	The revenue of the tramway undertaking of the Corporation and the general rate fund and general rate	Twenty years from the date or dates of borrowing.
(h) The reconstruction of the roads upon which the tramways and light railways to be removed or discontinued under this Act are situate.	28,000	The general rate fund and general rate.	Thirty years from the date or dates of borrowing.
(i) The payment of the price or consideration for the purchase of part of the undertaking of the Midland Corporation under the provisions of this Act.	The sum requisite.	The revenue of the electricity undertaking of the Corporation and the general rate fund and general rate.	Thirty years from the date or dates of borrowing.
(j) The payment of the costs charges and expenses of this Act.	The sum requisite.	The general rate fund and general rate or such other funds and revenues and in such proportions as the Corporation may by resolution determine.	Five years from the passing of this Act.

A.D. 1928.

(2) (a) The Corporation may also with the consent of the Minister of Transport borrow such further money as may be necessary for any of the purposes of Part II (Trolley vehicles and omnibuses) of this Act and with the consent of the Electricity Commissioners such further money as may be necessary for any of the purposes of Part IV (Electricity) of this Act and with the consent of the Minister such further money as may be necessary for any of the other purposes of this Act.

(b) Any money borrowed under this subsection shall be repaid within such period as may be prescribed by the Minister or Commissioners with whose consent it is borrowed and that period shall be the prescribed period for the purposes of this Act and the enactments incorporated therewith or applied thereby.

(c) In order to secure the repayment of any money borrowed under this subsection and the payment of interest thereon the Corporation may mortgage or charge such revenue fund or rate as may be prescribed by the Minister or Commissioners with whose consent the money is borrowed.

(3) The provisions of this section shall not limit the powers conferred upon the Corporation by section 94 (Power to include lands &c. in mortgages) or by section 95 (Power to use one form of mortgage for all purposes) of the Act of 1899 as amended by the Act of 1925.

Power for
Cannock
Council to
borrow.

60. If the Cannock Council construct Street Work No. 9 referred to in the section of this Act of which the marginal note is "Power to construct street works"—

(1) The Cannock Council may from time to time independently of any other borrowing power borrow at interest for and in connection with the purposes mentioned in the first column of the following table the respective sums mentioned in the second column thereof and in order to secure the repayment thereof and the payment of interest thereon they may mortgage or charge the general rate fund and the general rate of the Cannock district and they shall pay off all moneys so borrowed within the respective periods (each of which is in the enactments referred to in subsection (3) of this section

referred to as "the prescribed period") mentioned in the third column thereof (namely):— A.D. 1928.
—

1	2	3
Purpose.	Amount.	Period for Repayment.
(a) The purchase of lands for the construction of Street Work No. 9 authorised by this Act.	The sum requisite.	Sixty years from the date or dates of borrowing.
(b) The construction of Street Work No. 9 authorised by this Act.	£16,000	Thirty years from the date or dates of borrowing.

(2) (a) The Cannock Council may also with the consent of the Minister borrow such further money as may be necessary for the purposes aforesaid and any money borrowed under this subsection shall be repaid within such period as may be prescribed by the Minister and that period shall be the prescribed period for the purposes of the enactments incorporated with this section or applied thereby;

(b) In order to secure the repayment of any money borrowed under this subsection and the payment of interest thereon the Cannock Council may mortgage or charge such revenue fund or rate as may be prescribed by the Minister:

(3) The following provisions of the Act of 1899 of the Order of 1911 and of the Act of 1915 shall apply to the exercise by the Cannock Council of the powers of this section as if the Cannock Council were therein referred to instead of the Corporation:—

The Act of 1899—

Section 70 (Certain regulations of Public Health Act 1875 as to borrowing not to apply);

Section 71 (Mode of raising money);

Section 72 (Provisions of Public Health Act as to mortgages to apply);

Section 76 (Protection of lender from inquiry);

A.D. 1928.

- Section 77 (Corporation not to regard trusts);
 Section 78 (Appointment of receiver);
 Section 82 (Application of money borrowed);
 Section 83 (Expenses of execution of Act);
 Section 96 (Inquiries by Local Government Board).

The Order of 1911—

Article VI. (Power to re-borrow).

The Act of 1915—

- Section 49 (Mode of payment off of money borrowed) except subsection (2) thereof:

Provided that the said section 96 of the Act of 1899 shall have effect as if the words “five guineas” were inserted therein instead of the words “three guineas”:

- (4) The amount which may be borrowed by the Corporation in pursuance of paragraph (b) of subsection (1) of the section of this Act of which the marginal note is “Power to borrow” shall be reduced by sixteen thousand pounds.

Insurance
fund.

61.—(1) The Corporation may if they think fit establish a fund to be called “the insurance fund” with a view of providing a sum of money which shall be available for making good all losses damages costs and expenses to which the Corporation may be subjected in consequence of the whole or any part of all or any of the following risks (that is to say):—

- (i) Risk of fire in respect of buildings works premises and the contents thereof and other property whether belonging or on loan to or under the care custody or control of the Corporation;
- (ii) Risk of accident and claims by third parties in respect of tramways trolley vehicles omnibuses fire engines scavenging vehicles motor cars and motor transport vehicles;
- (iii) Risk of explosion in respect of boilers;
- (iv) Risks under the common law the Employers’ Liability Act 1880 the Workmen’s Compensation Act 1906 or any Act or Acts for the time being

amending or extending those Acts or otherwise in respect of accidents to the officers servants or workmen of the Corporation or to third parties; A.D. 1928.
—

- (v) Risks of injuries to school children through accident caused by the negligence of a teacher attendant or other person or defect in any school premises of or leased to the Corporation;
- (vi) Risks of mechanical or electrical or other breakdown at or in connection with any of the undertakings or works of the Corporation;
- (vii) Risks of loss due to infidelity of officials of the Corporation;
- (viii) Any other risks against which in the absence of such an insurance fund the Corporation would ordinarily insure.

(2) The establishment of an insurance fund under this section shall not prevent the Corporation from insuring in one or more insurance offices of good repute against the whole or any part of all or any of the several risks for which the insurance fund is intended to provide.

(3) In each year after the establishment of the insurance fund the Corporation shall pay into that fund either—

- (a) such a sum as shall in their opinion be equal to the aggregate amount of the premiums which would be payable if the Corporation fully insured in some insurance office of good repute against the several risks for which the insurance fund is intended to provide; or
- (b) if the Corporation partly insure in some insurance office of good repute against the whole or any part of the several risks for which the insurance fund is intended to provide such sum as will together with the premiums paid for the last-mentioned insurance be equal to the aggregate amount aforesaid.

(4) When the insurance fund shall amount to one hundred and seventy-five thousand pounds the Corporation may if they think fit discontinue the yearly payments to the fund but if the fund is at any time reduced below one hundred and seventy-five thousand pounds

A.D. 1928. — the Corporation shall recommence and continue the yearly payments to that fund in accordance with subsection (3) of this section until the fund be restored to the sum of one hundred and seventy-five thousand pounds.

(5) The Corporation shall provide the yearly payments aforesaid by contributions from the general rate fund and shall show the same in their accounts under the separate heading or division in respect of the particular undertaking or department of the Corporation which if the risks were insured against in an insurance office would be properly chargeable with the payment of the premiums of such insurance.

(6) Except so far as the insurance fund and the proceeds of sale of securities in which that fund is invested may be necessary to meet losses damages costs and expenses in consequence of risks for which the fund is intended to provide all moneys for the time being standing to the credit of the fund shall (subject to the provisions of this Act) be invested in statutory securities and the interest and annual proceeds arising from those securities shall be invested and accumulated until the fund amounts to the sum of one hundred and seventy-five thousand pounds and when and so long as the fund amounts to that sum the interest and annual proceeds of the securities shall be carried to the credit of the general rate fund.

(7) For the purposes of this section the Corporation may if they deem it expedient and by arrangement with the managers of any public elementary school or the governing body of any college secondary school institute or hostel not provided by the Corporation as the local education authority include in the risks insured under paragraph (iv) of subsection (1) of this section risks of accident to any teacher employed in any such school college institute or hostel.

(8) The insurance fund shall be applied to meet any losses damages costs or expenses sustained by the Corporation in consequence of risks for which it is intended to provide in the order of the dates on which such losses damages costs or expenses become ascertained and if at any time and from time to time the insurance fund shall be insufficient to make good any such losses damages costs or expenses the Corporation may with the

sanction of the Minister and on such security as the Minister may prescribe borrow at interest under and subject to the provisions of this Act such sums of money as will be necessary to make up the deficiency. The amounts of the annual charges in respect of interest on and repayment of principal of any sums so borrowed and the amounts of any such deficiencies as aforesaid not made up by borrowing shall be paid out of the general rate fund and charged in the accounts of the Corporation under the separate headings or divisions in respect of such undertakings or departments of the Corporation and in such proportions as the Minister may direct having regard to the risks through which such deficiencies arise.

A.D. 1928.

62.—(1) Before any person shall erect on any land a retaining wall of greater height than six feet abutting on or adjacent to or within twelve feet of any street or road he shall submit to the Corporation plans sections and specifications thereof and no such wall shall be erected except in accordance with such plans sections and specifications as approved by the Corporation.

Erection of
retaining
walls.

(2) Any person who shall erect a retaining wall contrary to the provisions of this section or any owner who after erection shall after reasonable notice in writing from the Corporation requiring him so to do fail to put such wall in proper repair shall without prejudice to any other right or remedy of the Corporation be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

(3) Nothing in this section shall extend or apply to any retaining wall constructed by or belonging to or which may hereafter be constructed by or belong to any railway company in the exercise of their statutory powers.

63. Notwithstanding anything contained in Parts III and VII of this Act and in the section of this Act of which the marginal note is "Power to provide water tanks under streets" the provisions of subsections (1) to (8) inclusive of section 39 (For protection of Wolverhampton Gas Company) of the Act of 1925 shall unless otherwise agreed in writing between the Corporation and the Wolverhampton Gas Company (in this section called "the company") and in addition to any other provisions enuring for the protection of the company apply and

For protec-
tion of
Wolver-
hampton
Gas Com-
pany.

A.D. 1928. — have effect for the protection of the company in all respects as if the same were set out in this section but with references therein to Parts III and VII of this Act and to the above-mentioned section thereof respectively substituted for the references to Parts III and X of the Act of 1925.

Application
of certain
provisions
of existing
enactments.

64.—(1) The following provisions of the Act of 1899 the Act of 1904 the Order of 1911 the Act of 1915 the Act of 1920 and the Act of 1925 shall extend and apply to and for the purposes of this Act as if those provisions were with all necessary modifications re-enacted in this Act (namely):—

The Act of 1899—

- Section 6 (Correction of errors &c. in deposited plans and book of reference);
- Section 8 (Owners may be required to sell parts only of certain lands and buildings);
- Section 9 (Persons under disability may grant easements &c.);
- Section 12 (Power to retain sell &c. lands);
- Section 13 (Proceeds of sale of surplus lands);
- Section 70 (Certain regulations of Public Health Act 1875 as to borrowing not to apply);
- Section 71 (Mode of raising money);
- Section 72 (Provisions of Public Health Act as to mortgages to apply);
- Section 76 (Protection of lender from inquiry);
- Section 77 (Corporation not to regard trusts);
- Section 78 (Appointment of receiver);
- Section 82 (Application of money borrowed);
- Section 83 (Expenses of execution of Act);
- Section 96 (Inquiries by Local Government Board).

The Act of 1904—

- Section 11 (Temporary stoppage of streets);
- Section 87 (Audit of accounts);
- Section 91 (General provisions as to byelaws);

A.D. 1928.

- Section 94 (As to appeal);
Section 95 (Compensation how to be determined);
Section 96 (Recovery of penalties);
Section 97 (Informations &c. by whom to be laid);
Section 98 (Penalties to be paid over to treasurer);
Section 100 (Crown rights).

The Order of 1911—

Article VI (Power to re-borrow).

The Act of 1915—

Section 49 (Mode of payment off of money borrowed) except subsection (2) thereof.

The Act of 1920—

- Section 6 (Subsidiary works);
Section 7 (Limits of deviation);
Section 8 (Extinction of private rights of way).

The Act of 1925—

- Section 165 (Power to enter premises);
Section 166 (Penalty on occupier refusing execution of Act);
Section 172 (Recovery of demands);
Section 173 (Saving for indictments &c.);
Section 175 (Application of section 265 of Public Health Act 1875);
Section 176 (Inquiries by Minister of Transport);
Section 177 (Powers of Act cumulative).

(2) Provided that—

- (a) The said section 8 of the Act of 1899 shall for the purposes of such application apply in respect of the premises referred to in the Second Schedule to this Act and those premises shall be the scheduled properties within the meaning of that section;
(b) Nothing contained in the said section 12 of the Act of 1899 as extended and applied by this

A.D. 1928.
—

section to and for the purposes of this Act shall release the Corporation or any person purchasing or acquiring any lands from them under that section as so extended and applied from any rents covenants restrictions reservations terms or conditions made payable by or contained in any conveyance lease or other deed or instrument by which any such lands were or may hereafter be conveyed or leased to or otherwise acquired by the Corporation or any person from or through whom the Corporation may have derived or may hereafter derive title to the same but all such rents covenants restrictions reservations terms and conditions shall remain and be of as full force and effect and may be recovered exercised enjoyed and enforced in like manner and to the same extent as if this Act had not been passed;

- (c) Nothing in the said sections 12 and 13 of the Act of 1899 shall be taken to dispense with the necessity for obtaining the consent of the Board of Education to any sale lease exchange or other disposition of land acquired for the extension or improvement of the technical college in Wulfruna Street under the section of this Act of which the marginal note is "Power to acquire further lands" in any case in which such consent would be required if this Act had not been passed nor in the case of the sale of such land to authorise the Corporation to apply the proceeds of sale otherwise than subject to the provisions of section 115 of the Education Act 1921;
- (d) The said section 96 of the Act of 1899 shall have effect as if the words "five guineas" were inserted therein instead of the words "three guineas";
- (e) The said section 11 of the Act of 1904 shall only apply in relation to the provisions of Parts II and III of this Act and in the exercise by the Corporation of the powers of that section for the purposes of this Act the

Corporation shall at all times maintain reasonably sufficient access both for vehicular and pedestrian traffic to the stations and depôts of any railway company; A.D. 1928.

- (f) The said sections 165 and 166 of the Act of 1925 shall have effect as if Part VI of this Act were therein referred to instead of any parts of the Act of 1925.

65. All the costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation out of the general rate fund and general rate or out of such other funds and revenues and in such proportions as the Corporation may by resolution determine or out of moneys to be borrowed under this Act for that purpose. Costs of Act.

The SCHEDULES referred to in the foregoing Act.

FIRST SCHEDULE.

(1) So much of Tramway No. 3 authorised by the Wolverhampton Tramways Order 1877 as lies between the boundary of the borough and a point at or near to the junction of Lichfield Street and Church Street in the urban district of Bilston.

(2) Railway No. 1 Railway No. 2 and Railway No. 3 authorised by the South Staffordshire Light Railway Order 1900.

(3) Railway No. 1 Railway No. 1A Railway No. 1B Railway No. 3 and Railway No. 3A authorised by the South Staffordshire Light Railway (Extensions) Order 1900.

(4) The tramway authorised by the Wolverhampton Tramways (Extension) Order 1878.

(5) All that piece of land in the urban district of Bilston belonging or reputed to belong to the Wolverhampton Company which piece of land adjoins Willenhall Road and contains 3,648 square yards or thereabouts together with the sub-station

A.D. 1928. (excluding plant therein whether, the same be landlord's or tenant's fixtures and fittings) and other buildings erected thereon.

(6) Fifteen tramcars which are owned by and are being operated by the Wolverhampton Company at the date of this Act.

(7) Fixed and movable plant at the depôt of the Wolverhampton Company which is situate in Willenhall Road Bilston and which is used by the Wolverhampton Company for the purpose of repair and maintenance of rolling stock overhead equipment and permanent way.

(8) The low tension feeders leading from the said depôt and used for the purpose of maintaining the pressure on the overhead wires and equipment of the Wolverhampton Company.

(9) So much of Tramway No. 2 authorised by the Staffordshire Tramways Order 1879 as extends from the termination of the above-mentioned tramway authorised by the Wolverhampton Tramways (Extension) Order 1878 to the " Bull Stake " in the urban district of Darlaston.

SECOND SCHEDULE.

LIST OF PROPERTIES OF WHICH PART ONLY MAY BE TAKEN.

Area.	Street work or other object for or in connection with which lands are to be acquired.	Numbers on Deposited Plans.
Borough of Wolverhampton.	Street Work No. 2 - - -	7 15 40.
	Street Work No. 3 - - -	89.
	Street Work No. 6 - - -	3 5 29 31A 35.
	Street Work No. 11 - - -	17.
	Street Work No. 12 - - -	37.
	Provision of space for the erection of buildings adjoining or near to Work No. 6 authorised by the Act of 1925 - - -	1 2.
Parish of Bushbury	Extension and improvement of technical college in Wulfruna Street - - -	1 2 3.
	Street Work No. 9 - - -	8 10.

THIRD SCHEDULE.

A.D. 1928.

PART I.

Capacity of Meter.			Rent per quarter.	
			s.	d.
Not exceeding 2·5 amperes	-	-	1	3
Exceeding 2·5 amperes but not exceeding	5 amperes		1	6
Exceeding 5 amperes but not exceeding	10 amperes		1	9
Exceeding 10 amperes but not exceeding	15 amperes		2	0
Exceeding 15 amperes but not exceeding	20 amperes		2	3
Exceeding 20 amperes but not exceeding	25 amperes		2	6
Exceeding 25 amperes but not exceeding	50 amperes		3	0
Exceeding 50 amperes but not exceeding	75 amperes		3	6
Exceeding 75 amperes but not exceeding	100 amperes		4	0
Exceeding 100 amperes but not exceeding	150 amperes		5	0
Exceeding 150 amperes but not exceeding	200 amperes		6	0
Exceeding 200 amperes but not exceeding	300 amperes		6	6
Exceeding 300 amperes but not exceeding	400 amperes		7	0
Exceeding 400 amperes but not exceeding	500 amperes		7	6
Exceeding 500 amperes but not exceeding	750 amperes		8	0
Exceeding 750 amperes but not exceeding	1,000 amperes		10	0

The Corporation may charge one meter rent in accordance with the above scale for a single-phase supply not exceeding seventy-five lamps of sixty watts each and in all other cases the Corporation may charge two meter rents.

A.D. 1928.

PART II.

	Percentage of Discount to be allowed.
In respect of any account for a quarter of a year where the number of units in respect of which the demand is made does not exceed 25 - - - - -	5
In respect of any quarter of a year where such number of units exceeds 25 but does not exceed 50 - - - - -	10
In respect of any quarter of a year where such number of units exceeds 50 but does not exceed 100 - - - - -	12½
In respect of any quarter of a year where such number of units exceeds 100 but does not exceed 250 - - - - -	15
In respect of any quarter of a year where such number of units exceeds 250 but does not exceed 500 - - - - -	17½
In respect of any quarter of a year where such number of units exceeds 500 but does not exceed 750 - - - - -	20
In respect of any quarter of a year where such number of units exceeds 750 but does not exceed 1,000 - - - - -	22½
In respect of any quarter of a year where such number of units exceeds 1,000 but does not exceed 1,500 - - - - -	25
In respect of any quarter of a year where such number of units exceeds 1,500 but does not exceed 2,000 - - - - -	27½
In respect of any quarter of a year where such number of units exceeds 2,000 - - - - -	30

Printed by EYRE and SPOTTISWOODE, LTD.,

FOR

WILLIAM RICHARD CODLING, Esq., C.B., C.V.O., C.B.E., the King's Printer of
Acts of Parliament.

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